

**BEFORE THE UTTAR PRADESH REAL ESTATE REGULATORY
AUTHORITY, G.B.NAGAR**

Complaint No. NCR144/10/62470/2020

Bench AD

IN THE MATTER OF:-

Neeraj Vohra

...Complainant

Versus

M/s Newtech Promoters & Developers Pvt. Ltd.. (now known
as M/s Aashiyana Promoters & Developers Pvt. Ltd.)

...Respondent

DoH - 12.09.2025

COMPLIANCE REPORT

Brief Facts & Compliance:

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The complainant, Mr. OmkarNathTandon, had booked Flat No. **F-1103**, situated on the 11th Floor, Tower/Block-F, in the residential project known as **Newtech La-Galaxia**, located at Surajpur Site-C, Phase-II, Group Housing Plot HRA-11, Greater Noida. Pursuant to the payment of the initial consideration, a Builder Buyer Agreement ("BBA") was duly executed between the parties, namely M/s Newtech Promoters & Developers Pvt. Ltd. (the promoter) and the complainant.

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DoH - 12.09.2015

COMPLIANCE REPORT

Brief Facts & Compliance:

The complainant, Mr. OmkarNathTandon, had booked Flat No. **F-1103**, situated on the 11th Floor, Tower/Block-F, in the residential project known as **Newtech La-Galaxia**, located at Surajpur Site-C, Phase-II, Group Housing Plot HRA-11, Greater Noida. Pursuant to the payment of the initial consideration, a Builder Buyer Agreement ("BBA") was duly executed between the parties, namely M/s Newtech Promoters & Developers Pvt. Ltd. (the promoter) and the complainant.

Subsequently, due to an alleged delay in handing over possession of the flat, the complainant approached the Hon'ble RERA Authority by filing Complaint No. Complaint No.NCR144/10/62470/2020. Upon hearing the parties, the Hon'ble Authority was pleased to pass an order dated 12.10.2021. It is a matter of record that the allottee in present complaint has sought relief of refund which was not considered by Hon'ble Authority while passing order. **Copy of order dated 12.10.2021 enclosed.**

However, it is pertinent to bring to the notice of this Hon'ble Authority that the delay in handing over possession was not solely attributable to the promoter. The project, which involved a large number of allottees, faced significant financial constraints due to widespread defaults in payment by various allottees. As a direct consequence of these non-payments, the construction and development activities had to be halted, placing the entire project in financial jeopardy.)

Recognizing the distressed financial condition of the project arising from widespread defaults by several allottees, and in an effort to safeguard the interests of genuine homebuyers, the promoter, with the express consent and support of the Association of Allottees (AOA), approached the Hon'ble RERA Authority to permit the completion of the project under the provisions of Section-8 of the RERA Act. Acting upon this request, and in exercise of its statutory powers, the Authority assumed supervisory control over the project's execution and accordingly issued detailed directions through orders dated 24.12.2021 and 10.06.2023. These orders, inter alia, stipulated that in cases of persistent default by any allottee, even after three consecutive reminders, the promoter would be entitled to cancel the allotment. It was further recorded by the Authority, with the concurrence of all stakeholders including the AOA, that any decision regarding the imposition of delay-related interest or penalty would be deferred until the successful completion of the project and the subsequent handover of possession.



That pursuant to the orders passed under Section 8, the promoter resumed and completed the pending construction work under the strict supervision of the RERA Authority. [The promoter is now in the final stages of obtaining all necessary No Objection Certificates (NOCs) and has submitted an application for the Occupancy/Completion Certificate (OC/CC) before the competent authority on 04.02.2025.] It is the promoter's firm intention to issue an offer of possession to eligible allottees by 31st May 2025, subject to their fulfillment of payment obligations. Copies of the said orders and the application for completion certificate are annexed herewith.

That the complainant, despite repeated opportunities and multiple written communications, has willfully failed and neglected to clear the outstanding dues in respect of the unit allotted to him.

It is pertinent to note that a final demand letter was issued on 31.01.2024, followed by a

further demand dated 04.03.2024, and a first reminder dated 16.05.2024. In total, more than three written demands/reminders have been duly served upon the complainant. Despite adequate notice and time, the complainant has failed to comply with the payment obligations. The home loan account associated with the unit.

That in light of the complainant's continued default and non-compliance, the promoter has lawfully cancelled the allotment of the unit vide letter dated 12.06.2024. The promoter further reserves the absolute right to create third-party interest in the said unit, without any further notice to the complainant. Copies of demand letters along with cancellation letter enclosed.

That without prejudice to the above and in compliance with the order dated 12.10.2021, the promoter reiterates its readiness and willingness to refund the complainant's own contribution and to settle the bank loan in respect of the said unit, strictly subject to the complainant's prior payment and clearance

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of all outstanding dues. The respondent is willing to issue a refund, and the complainant has also clearly expressed their relief for a refund. Since both parties are in agreement on this resolution, it is reasonable and appropriate for the refund to be granted.

That in this backdrop, a Recovery Certificate was issued dated 17.03.2023 by this Hon'ble Authority for the sum of Rs. 14,53,215.78 against the Opposite Party which is factually and legally untenable. Said RC appears to have been issued inadvertently and without due appreciation of the prevailing facts, particularly the complainant's non-payment and that the allotted flat has already been cancelled. Therefore any RC against a cancelled unit is unlawful and legally untenable. **Copy of RC enclosed.**

< The project has been lawfully completed under the supervision of the RERA Authority and in full consonance with the understanding reached with the Association of Allottees. The mutually agreed terms explicitly stipulate

that any compensation pertaining to delay shall be determined only after the project's completion and upon the actual handover of possession to the allottee.)

It is further submitted that in cases where the unit has been cancelled and no possession is taken, the question of delay compensation does not arise and is not applicable. Accordingly, the RC, in such a case is unwarranted and ought to be withdrawn.

Prayer:

It is therefore humbly prayed that this Hon'ble Court may kindly:

(a) Permit the Respondent to refund Complainant's own contribution after statutory deductions amounting to Rs. 5,56,116/-back to the Complainant and settle the home loan account associated with the unit.

(b) Direct the withdrawal of the Recovery Certificate (RC) issued in relation to the aforementioned unit.

(c) Pass any other order(s) as this Hon'ble Court deems fit and proper in the interest of justice.



Respondent/O.P.

Through


(Chandra Kishore Jha)

Advocate

(D/794-A/1990)

15.4.2025

CHANDRA KISHORE JHA

Enl-D/794-A/1990 Advocate

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98140 12345

उ०प्र० भू-सम्पदा विनियामक प्राधिकरण, क्षेत्रीय कार्यालय, गौतमबुद्धनगर।

सुनवाई पीठ-01ए

आदेश अन्तर्गत धारा-31

श्री राजीव कुमार, माननीय अध्यक्ष

क्रम संख्या	शिकायत संख्या	शिकायतकर्तागण
1	NCR144/10/62470/2020	नीरज बोहरा
2	NCR144/10/62473/2020	अजय प्रताप सिंह चौहान
3	NCR144/09/59935/2020	शशि कान्त मिश्रा
4	NCR144/03/72670/2021	हेमन्त महेश्वरी

बनाम

न्यूटेक प्रमोटर्स एंड डेवलपर्स प्रा० लि०

शिकायतकर्ता नीरज बोहरा के साथ 03 अन्य शिकायतकर्तागण द्वारा विपक्षी के विरुद्ध वाद योजित किये गये हैं। इन सभी शिकायतों के तथ्य समान हैं और एक समान साक्ष्य हैं। यह सभी शिकायतें La Galaxia से सम्बन्धित हैं। अतः एक ही निर्णय से इनका निस्तारण किया जा रहा है। शिकायत संख्या :- NCR144/10/62470/2020 नीरज बोहरा अग्रणी वाद रहेगा।

प्रस्तुत शिकायत प्रार्थना पत्र शिकायतकर्तागण द्वारा विपक्षी के विरुद्ध जमा धनराशि मय ब्याज दिलाये जाने हेतु संस्थित किया गया है।

संक्षेप में शिकायतकर्ता का कथन है कि उनके द्वारा में विपक्षी की परियोजना La Galaxia में 11वें तल पर यूनिट संख्या-F-1103 बुक करायी गयी थी, जिसका कुल मूल्य 34,27,000/- रुपये है, जिसके सापेक्ष में शिकायतकर्ता द्वारा 30,47,559/- रुपये का भुगतान किया गया। विपक्षी द्वारा शिकायतकर्ता को परियोजना पूर्ण कर कब्जा दिये जाने का दायित्व था, किन्तु विपक्षी द्वारा अभी तक कब्जा नहीं दिया गया है। विपक्षी द्वारा प्रश्नगत टॉवर का निर्माण नहीं किया गया है।

और विपक्षी द्वारा रेरा पोर्टल पर परियोजना की पूर्णता तिथि 31.12.2018 अंकित की गयी थी, जो कि बीत चुकी है। अतः शिकायतकर्ता द्वारा जमा धनराशि मय ब्याज दिलाये जाने का अनुरोध किया गया है।

शिकायतकर्ता की ओर से अपने कथन के समर्थन एलॉटमेंट कम फ्लैट बायर एग्रीमेंट दिनांक 27.10.2012, जमा धनराशि की रसीदों की प्रति दाखिल की गयी है।

विपक्षी द्वारा प्रतिवादपत्र दिनांकित 31.10.2020 दाखिल करते हुए कहा गया है कि विपक्षी की परियोजना **La Galaxia** रेरा मे पंजीकृत है, जिसके टॉवर-E, F एवं G का फिनिशिंग कार्य चल रहा है और जून 2021 तक ओ.सी सहित कब्जा दे दिया जायेगा। परियोजना का निर्माण कार्य रेरा लागू होने से पूर्व शुरू हुआ था, ऐसी स्थिति में रेरा के प्रावधान लागू नहीं होते हैं। दिनांक 27.10.2012 को अनुबंध निष्पादित कराया गया है, जिसके अनुसार परियोजना में देरी के लिए शिकायतकर्ता 5 रुपये प्रति वर्ग फुट प्रति माह की दर से विलम्ब ब्याज प्राप्त करने का अधिकारी है और अनुबंध रेरा लागू होने से पूर्व निष्पादित कराया गया है। शिकायतकर्ता द्वारा उनकी परियोजना **La Galaxia** के टॉवर-F के 11वें तल पर फ्लैट संख्या-F-1103 बुक किया गया, जिसका कब्जा जून 2021 तक दे दिया जायेगा। अनुबन्ध के अनुसार यूनिट का कुल मूल्य 34,27,000/- रुपये + ब्याज + कर है। शिकायतकर्ता द्वारा यह कहा गया है कि उनके द्वारा 30,47,559/- रुपये का भुगतान किया है, उक्त तथ्य गलत है, बल्कि शिकायतकर्ता द्वारा 29,48,610/- रुपये की धनराशि का भुगतान किया गया है। परियोजना फोर्स मैज्योर इवेन्ट्स के कारण विलम्बित हुई, जो कि उनके नियंत्रण में नहीं था। स्थानीय किसानों द्वारा धरना प्रदर्शन के कारण कार्यों में बाधा उत्पन्न हुई। दिनांक 01.11.2019 से 10.11.2019 तक निर्माण कार्य बाधित रहा। इसके अतिरिक्त कोविड-19 के कारण भी मार्च 2020 से सितम्बर 2020 तक भी निर्माण कार्य बाधित रहा। विपक्षी, शिकायतकर्ता की जमा धनराशि वापस करने की स्थिति में नहीं है क्योंकि परियोजना के निर्माण में जमा धनराशि का निवेश किया गया है।

इसके अतिरिक्त पीठ के समक्ष सुनवाई के दौरान विपक्षी द्वारा यह कहा गया है कि वह शिकायतकर्तागण की यूनिट को पूर्ण कर दिसम्बर 2021 तक कब्जा दे देंगे। उक्त तथ्य ऑर्डरशीट पर अंकित है और कम्पलेन्ट पेज पर अपलोडिड है।

उभयपक्ष के तर्कों को सुना गया व पत्रावली का अवलोकन किया गया, जिसके आधार पर निम्नलिखित याद बिन्दु विचरित किये गये :-

1. क्या रेरा आने से पूर्व के अनुबन्ध रेरा के दायरे में नहीं आते हैं ? व क्या पक्षकारों के मध्य रेरा लागू होने से पूर्व अनुबन्ध निष्पादित किये जाने पर रेरा के प्राविधान लागू नहीं होंगे ?

2. क्या force majeure events होने के कारण विपक्षी की परियोजना विलंबित हुई? यदि हां तो प्रभाव?
3. क्या शिकायतकर्तागण की जमा धनराशि वापस दिलायी जा सकती है ? यदि नहीं तो क्या अनुतोष अनुमन्य होगा ?

निस्तारण बिन्दु संख्या-1

बिन्दु संख्या 1 इस तथ्य पर विचारित है कि क्या रेरा आने से पूर्व के अनुबन्ध रेरा के दायरे में नहीं आते हैं? व क्या पक्षकारों के गभ्य रेरा लागू होने से पूर्व अनुबन्ध निष्पादित किये जाने पर रेरा के प्राविधान लागू नहीं होंगे ?

इस सम्बन्ध में बॉम्बे उच्च न्यायालय द्वारा रिट याचिका संख्या-2737/2017 'नीलकमल रियलटर्स सबअर्बन प्रा0लि0 एवं अन्य बनाम यूनियन ऑफ इंडिया' में दिया गया आब्जर्वेशन महत्वपूर्ण है जिसमें स्पष्ट रूप से उल्लिखित किया गया है कि :-

86. On behalf of the petitioners it was submitted that registration of ongoing project under RERA would be contrary to the contractual rights established between the promoter and allottee under the agreement for sale executed prior to registration under RERA. In that sense, the provisions have retrospective or retroactive application. After assessing, we find that the projects already completed are not in any way affected and, therefore, no vested or accrued rights are getting affected by RERA. The RERA will apply after getting the project registered. In that sense, the application of RERA is prospective in nature.

87. The important provisions like Section 3 to 19, 40, 59 to 70 and 79 to 80 were notified for operation from 1/5/2017. RERA law was enacted in the year 2016. The Central Government did not make any haste to implement these provisions at one and the same time, but the provisions were made applicable thoughtfully and phase-wise. Considering the scheme of RERA, object and purpose for which it is enacted in the larger public interest, we do not find that challenge on the ground that it violates rights of

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the petitioners under Articles 14 and 19(1)(g) stand to reason. Merely because sale and purchase agreement was entered into by the promoter prior to coming into force of RERA does not make the application of enactment retrospective in nature. The RERA was passed because it was felt that several promoters had defaulted and such defaults had taken place prior to coming into force of RERA. In the affidavit-in-reply, the UOI had stated that in the State of Maharashtra 12608 ongoing projects have been registered, while 806 new projects have been registered. This figure itself would justify the registration of ongoing projects for regulating the development work of such projects.

256. "Section 4(2)(1)(C) enables the promoter to revise the date of completion of project and hand over possession. The provisions of RERA, however, do not rewrite the clause of completion or handing over possession in agreement for sale. Section 4(2)(1)(C) enables the promoter to give fresh time line independent of the time period stipulated in the agreements for sale entered into between him and the allottees so that he is not visited with penal consequences laid down under RERA. In other words, by giving opportunity to the promoter to prescribe fresh time line under Section 4(2)(1)(C) he is not absolved of the liability under the agreement for sale."

उपरोक्त विधि व्यवस्था से यह स्पष्ट है कि रेरा के प्राविधान के अनुसार अनुबन्ध में दिये गये पूर्णता एवं कब्जे देने के प्रस्तर का पुनर्लेखन नहीं किया जा सकता। धारा 4(2)(1)(सी) के अन्तर्गत प्रमोटर रेरा में पंजीकरण के समय एक नई समय सीमा दे सकता है, किन्तु उक्त समयावधि रेरा के परिणाम स्वरूप केवल अर्थदंड से बचा सकता है। अतः इससे अवधारित किया जाता है कि प्रमोटर अनुबन्ध में दिये गये कब्जे की तिथि के लिए उत्तरदायी है। यह भी रेरा अधिनियम में स्पष्ट है कि "ऑन गोईंग" परियोजनायें निश्चित रूप से रेरा अधिनियम की परिधि में आते हैं। उपरोक्त माननीय उच्च न्यायालय के आर्जेवेशन से यह भी स्पष्ट है कि यद्यपि रेरा पंजीकरण से पूर्व प्रमोटर एवं आवंटि के मध्य अनुबन्ध निष्पादित हुए हैं, परन्तु यदि परियोजना को रेरा में पंजीकरण कराया जाता है, तो रेरा के सभी प्राविधान लागू होंगे। प्रश्नगत परियोजना को रेरा में पंजीकृत कराया गया है और यह ऑनगोईंग की श्रेणी में है। ऐसी दशा में रेरा के सभी प्राविधान लागू होंगे।

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निस्तारण बिन्दु संख्या-2

बिन्दु संख्या-2 इस आशय का विचरित किया गया है कि क्या वास्तव में परियोजना फोर्स मैज्योर इवेन्ट्स होने कारण विलम्बित हुई ? यह बिन्दु विपक्षी के अभिकथनों पर विचरित किया गया है, जिसे साबित करने का भार विपक्षी पर है।

विपक्षी की ओर से कथन किया गया है कि परियोजना फोर्स मैज्योर इवेन्ट्स के कारण विलम्बित हुई, जो कि उनके नियंत्रण में नहीं था। स्थानीय किसानों द्वारा धरना प्रदर्शन के कारण कार्यों में बाधा उत्पन्न हुई। दिनांक 01.11.2019 से 10.11.2019 तक निर्माण कार्य बाधित रहा। इसके अतिरिक्त कोविड-19 के कारण भी मार्च 2020 से सितम्बर 2020 तक भी निर्माण कार्य बाधित रहा।

इस सम्बन्ध में अनुबन्ध के प्रस्तर-19(a) निम्नलिखित उल्लेखित है:-

19(a). That the Developer shall complete the development/construction of the Flat within 30 months from the date of signing of agreement which may vary for $\pm$ six months. That the Developer shall not be held responsible or liable for not performing any of its obligations or undertakings provided for in this Agreement if such performance is prevented, delayed or hindered by act of God, fire, storm, flood, explosion, war, riot, terrorist act, sabotage, court cases, injunctions not within the reasonable control of the Developer. The completion date is subject to force majeure conditions. No claim by way of damages/ compensation shall lie against the Developer in case of delay in handing over the possession on account of the force majeure condition and the Developer shall be entitled to a reasonable extension of time for the delivery of possession of the flat to the allottee.

इस सम्बन्ध में माननीय एन.सी.डी.आर.सी द्वारा उपभोक्ता शिकायत संख्या-1130/2016 " नीरू कौशल एवं अन्य बनाम यूनियटेक लिमिटेड " में निर्णय के प्रस्तर 14 में फोर्स मैज्योर द्वारा परियोजना विलम्बित होने के लिए निम्न ऑब्जरवेशन किया है :-

"Coming to the plea of Force Majeure taken by the opposite party. It may be noted that issue raised by the opposite party is no more resintegra. Similar pleas to

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explain the delay in construction were taken by the opposite party in Consumer Complaint No.347 of 2914 Swarn Talwar and 2 Ora. Vs. Unitech Ltd. and other connected consumer complaints which pertain to the alleged deficiency i.e. failure of the opposite party to deliver possession of the booked apartments in the same project. In the aforesaid matters, Coordinate Bench of this Commission vide order dated 14.08.2015 declined to accept the plea of Force Majeure taken by the opposite party. The relevant reasoning of the Coordinate Bench rejecting the plea of Force Majeure is reproduced as under:

"Coming to the pleas that there was recession in the economy and a disruption due to agitation by farmers and acute shortage of labour, etc., the following view taken by us In Satish Kumar Pandey (Supra) is relevant.

"Neither any new legislation was enacted nor an existing rule, regulation or order was amended stopping suspending or delaying the construction of the complex in which apartments were agreed to be sold to the complainants. There is no allegation of any lock-out or strike by the labour at the site of the project. There is no allegation of any slow-down having been resorted to by the labourers of the opposite party or the contractors engaged by it at the site of the project. There was no civil commotion, war, enemy action, terrorist action, earthquake or any act of God which could have delayed the completion of the project within the time stipulated in the Buyers Agreement. It was contended by the counsel for the OP that the expression 'slow down' would include economic slow-down or recession in the Real Estate sector. I, however, find no merit in this contention. The word 'slow down' having been used alongwith the words lock-out and strike, I has to be read ejusdem generis with the words lock-out and strike and therefore, can mean only a slow down if resorted by the labourers engaged in construction of the project.""

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इसके अतिरिक्त माननीय उच्चतम न्यायालय द्वारा सिविल अपील संख्या-940/2017 "विक्रम चटर्जी एवं अन्य बनाम यूनियन ऑफ इंडिया एवं अन्य" में निर्णय के पृष्ठ संख्या-234 एवं प्रस्तर 110 में फोर्स मैज्योर को निम्नवत् परिभाषित किया है:-

"....Force majeure shall mean a case of war, flood, drought, fire, cyclone, earthquake or any other calamity caused by nature."

उपरोक्त फोर्स मैज्योर के परिभाषा से यह स्पष्ट है कि फोर्स मैज्योर वह स्थिति है, जिसमें की युद्ध, बाढ़, सूखा, आग, तूफान, भूकम्प या अन्य प्रकृतिक आपदा आई हो, प्रश्नगत प्रकरण में ऐसी कोई परिस्थिति उत्पन्न नहीं हुई।

माननीय सर्वोच्च न्यायालय द्वारा सिविल अपील संख्या-13029/1985 "एम. सी. मेहता बनाम भारत सरकार" में पारित आदेश दिनांक 04.11.2019 में निम्नलिखित निर्देश दिये हैं :-

With respect to demolition and construction activities we direct that no demolition and construction activities take place in Delhi and NCR region. In case it is found that such activity is done, the local administration as well as the municipal authorities including the Zonal Commissioners, Deputy Zonal Commissioners shall be personally held responsible for all such activities. They have to act in furtherance of the Court's order and to ensure that no such activity takes place.

We direct that construction, demolition and activities be stopped forthwith as well as garbage burning. In case, any person is found in construction and demolition activity and garbage burning in Delhi and NCR region, he/she shall be penalized. Any person is doing construction and demolition activity in violation of this order, shall be penalized with Rs.1 Lac for such activity. For garbage burning he/she shall be penalized with Rs.5,000/- and besides liable for violation of the order passed by this Court to be dealt with in accordance with law.

इसके अतिरिक्त उपरोक्त सिविल अपील संख्या-13029/1985 में पारित आदेश दिनांक 09.12.2019 में निम्नलिखित निर्देश दिये हैं :-

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In the affidavit dated 05.12.2019, the Central Pollution Control Board (CPCB) has stated as under:-

"12. That it is respectfully submitted that it is normally experienced that in month of December depending upon Climatic Condition the AQI category varies. As a matter of fact, last year (2018) 8 days in the month of December were in severe AQI category. Presently the situation not being severe, CPCB is of considered opinion that partial ban could be in place of construction activities in as much as no construction should be permitted during night time (6.00 pm to 6.00 am). The ban imposed could be partially lifted by permitting activities during day time (6.00 am to 6.00 pm), subject to the criteria stipulated in GRAP, wherein strict enforcement of rules for dust control in construction activities and closure of non-compliant sites is mandated in moderate to poor AQI category and further a ban on construction activities may be imposed by EPCA if Ambient AIR quality levels persist in severe+/emergency category for 48 hours or more."

Hence, the ban is relaxed in terms of the recommendations made by Central Pollution Control Board (CPCB), as quoted above. However, conditions for raising construction be scrupulously followed.

माननीय सर्वोच्च न्यायालय द्वारा (दिनांक 04.11.2019 से दिनांक 14.02.2020) की अवधि के लिए निर्माण कार्य पर रोक लगायी गयी है, जिसमें माननीय सर्वोच्च न्यायालय द्वारा पारित आदेश दिनांक 09.12.2019 में पूर्ण प्रतिबन्ध को हटाते हुए आंशिक प्रतिबन्ध लगाया गया। ऐसे में माननीय सर्वोच्च न्यायालय द्वारा 35 दिन (दिनांक 04.11.2019 से दिनांक 09.12.2019) एवं 33 दिन (56+2) (दिनांक 10.12.2019 से दिनांक 14.02.2020 तक साँय 6 बजे से सुबह 6 बजे तक) की अवधि के लिए निर्माण कार्य पर प्रतिबन्ध लगाया गया। अतः उपरोक्त उल्लेखित आदेशों के क्रम में कुल 68 दिनों में निर्माण प्रभावित रहा। विपक्षी ऐसी दशा में कुल 68 दिन निर्माण कार्य प्रभावित रहने के कारण आंशिक रूप से लाभ पाने का अधिकारी है।

इस क्रम में समस्त सुसंगत तथ्यों पर विचारोपरान्त उOप्रO रेश अथॉरिटी द्वारा दिनांक 06.06.2020 को कोविड-19 (Corona Virus Disease) के प्रभाव के कारण सभी परियोजनाओं को पूर्ण करने हेतु दिनांक 25.03.2020 से 6 माह की अतिरिक्त

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अवधि अर्थात् दिनांक 25.09.2020 तक की अवधि दे दी गयी है और यह अतिरिक्त अवधि फोर्स मैज्योर इवेन्ट्स के कारण मानी जायेगी। इसको दृष्टिगत रखते हुए दिनांक 25.03.2020 से दिनांक 25.09.2020 तक परियोजना में हुए विलम्ब हेतु कोई ब्याज प्रमोटर द्वारा आवंटियों को नहीं दिया जाएगा और न ही शिकायतकर्ता से अतिदेय धनराशि पर कोई विलम्ब ब्याज लिया जायेगा। तदनुसार बिन्दु संख्या-2 निस्तारित किया जाता है।

निस्तारण बिन्दु संख्या-3

निस्तारण बिन्दु संख्या-3 इस आशय से विचारित किया गया है कि क्या शिकायतकर्तागण की जमा धनराशि वापस दिलायी जा सकती है ? यदि नहीं तो क्या अनुतोष अनुमन्य होगा ? यह वाद बिन्दु शिकायतकर्तागण के अभिकथनों के आधार पर विचारित किया गया है, जिसे साबित करने का भार शिकायतकर्तागण पर है।

शिकायतकर्ता द्वारा कथन किया गया है कि विपक्षी द्वारा शिकायतकर्ता को परियोजना पूर्ण कर कब्जा दिये जाने का दायित्व था, किन्तु विपक्षी द्वारा अभी तक कब्जा नहीं दिया गया है। विपक्षी द्वारा प्रश्नगत टॉवर का निर्माण नहीं किया गया है। अतः शिकायतकर्ता द्वारा जमा धनराशि मय ब्याज दिलाये जाने का अनुरोध किया गया है।

इस पर विपक्षी द्वारा प्रतिवादपत्र दाखिल करते हुए कहा गया है कि विपक्षी की परियोजना **La Galaxia** रेरा में पंजीकृत है, जिसके टॉवर-E, F एवं G का फिनिशिंग कार्य चल रहा है और जून 2021 तक ओ.सी सहित कब्जा दे दिया जायेगा। इसके अतिरिक्त पीठ के समक्ष सुनवाई के दौरान दिनांक 06.07.2021 को विपक्षी द्वारा यह कहा गया है कि वह शिकायतकर्तागण की यूनिट को पूर्ण कर दिसम्बर 2021 तक कब्जा दे देंगे। उक्त तथ्य ऑर्डरशीट पर अंकित है और कम्प्लेन्ट पेज पर अपलोडिड है।

जहाँ तक केता द्वारा रिफण्ड के अनुरोध का प्रश्न है, इस विषय में रेरा अधिनियम के प्राविधानों को समग्र रूप से पढ़ा जाना आवश्यक है ताकि सभी पक्षों के मत को दृष्टिगत रखते हुए एक संतुलित निर्णय लिया जा सके।

रेरा एक्ट की धारा 18 (1) में प्राविधान है कि :-

Section 18 (1) "If the promoter fails to complete or is unable to give possession of an apartment, plot or building,-

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(a) in accordance with the terms of the agreement for sale or, as the case may be, duly completed by the date specified therein; or

(b) due to discontinuance of his business as a developer on account of suspension or revocation of the registration under this Act or for any other reason,

he shall be liable on demand to the allottees, in case the allottee wishes to withdraw from the project, without prejudice to any other remedy available, to return the amount received by him in respect of that apartment, plot, building, as the case may be, with interest at such rate as may be prescribed in this behalf including compensation in the manner as provided under this Act:

Provided that where an allottee does not intend to withdraw from the project, he shall be paid, by the promoter, interest for every month of delay, till the handing over of the possession, at such rate as may be prescribed.

इस प्रकार केता को यह अधिकार है कि यदि उन्हें एग्रीमेंट के अनुरूप कब्जा नहीं मिलता तो वह अपनी जमा धनराशि को ब्याज सहित वापिस माँग सकते हैं अथवा प्रत्येक माह के विलम्ब के लिए ब्याज प्राप्त करते हुए परियोजना में बने रहें।

रेरा अधिनियम की धारा 34 में रेरा के अन्य "फंक्शन्स" के साथ-साथ सब-क्लॉज (f) में "to ensure compliance of the obligations cast upon the promoters, the allottees and the real estate agents under this Act and the rules and regulations made thereunder" का भी उल्लेख है।

इसी प्रकार धारा 32 में रियल इस्टेट सेक्टर के विकास हेतु अथॉरिटी के उत्तरदायित्यों में निम्न भी सम्मिलित हैं :-

"The Authority shall in order to facilitate the growth and promotion of a healthy, transparent, efficient and competitive real estate sector make recommendations to the appropriate Government of the competent authority, as the case may be, on, -

(a) protection of interest of the allottees, promoter and real estate agent;..... (j) any other issue that the

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Authority may think necessary for the promotion of the real estate sector."

उक्त प्राविधानों से यह स्पष्ट है कि "रियल एस्टेट सेक्टर" के स्वस्थ विकास को सुनिश्चित करने के लिए इसके सभी स्टैक होल्डर्स के हितों को समग्र रूप से देखते हुए समुचित निर्णय लेने का उत्तरदायित्व इस ऑथरिटी का है।

इस क्रम में मा. बॉम्बे उच्च न्यायालय द्वारा रिट याचिका संख्या- 2737/2017 "नीलकमल रियलटर्स सबअर्बन प्रा0लि0 एवं अन्य बनाम यूनियन ऑफ इंडिया" जिसमें रेरा अधिनियम की वैधानिकता के सम्बंध में निर्णय दिया गया था, के प्रस्तर 124 में मा. उच्च न्यायालय द्वारा निम्न संवीक्षण किया :-

"The entire scheme of the RERA is required to be kept in mind. It is already submitted during the course of hearing that in many cases helpless allottees had approached consumer forum, High Courts, Apex Court in a given fact situation of the case. The courts have been passing orders by moulding reliefs by granting interest, compensation to the allottees, and issuing directions for timely completion of project, transit accommodation during completion of project, so on and so forth. Under RERA now this function is assigned to the authority, tribunal. An appeal lies to the High Court. Under one umbrella, under one regulation and one law all the issues are tried to be resolved. Provisions of Section 71 refers to power to adjudicate. A District Judge is conferred with the power to adjudicate compensation under Sections 12, 14, 18 and 19. A promoter could very well put up his case before the adjudicator who deals with the issues in the light of the fact situation of each case. Therefore, there should not be any apprehension that mechanically compensation would be awarded against a promoter on failure to complete the development work."

उक्त से स्पष्ट है कि सभी पक्षों को सुनने के बाद, यद्यपि समय से इकाई न मिलने की दशा में आवंटि का अपनी धनराशि ब्याज सहित मांगने का अधिकार है, तथापि उक्त वर्णित संवीक्षा को देखते हुए अथॉरिटी, प्रकरण के समस्त तथ्यों, के आधार पर 'by moulding reliefs by granting interest, compensation to the allottees, and issuing directions for timely completion of project, transit

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accommodation during completion of project, so on and so forth के अनुरूप आदेश पारित किए जा सकते हैं।

रेरा के गठन के सम्बन्ध में माननीय सर्वोच्च न्यायालय द्वारा सिविल अपील संख्या-940/2017 "बिक्रम चटर्जी एवं अन्य बनाम यूनियन ऑफ इंडिया एवं अन्य" में दिनांक 23.07.2019 को पारित आदेश के पृष्ठ संख्या-241 के प्रस्तर-120 में निम्नवत् उल्लेख किया है:-

"It is apparent that RERA intends protection of home-buyers and aims at completion of the buildings. The buildings have to be completed, for that, we are required to pass orders. We have already assigned the task to NBCC for completion of buildings as the promoters/builders have failed to complete the building within the time fixed and the time which could have been extended. Now, more than 10 years have passed and buyers were given the assurances that they would get flats within three years period by the promoter/builder. The maximum time fixed in RERA has also expired and extension could not have been beyond 1 year."

उक्तानुसार यह स्पष्ट किया गया है कि रैरा आवंटियों के हितों को संरक्षित करने के लिए है और उसका लक्ष्य यह है कि प्रमोटर्स द्वारा बिल्डिंग के समस्त विकास कार्यों को पूर्ण कराते हुए गृहकेताओं को उनका आवास/प्लॉट मिल सके।

तत्कमानुसार आदेश के पृष्ठ संख्या-255 के प्रस्तर-137 में निम्नवत् उल्लेख किया है:-

"The provisions of RERA are beneficial to the home buyers and are intended to insulate them from fraudulent action, ensures completion of the building and it is the duty of the court to protect and ensure the home buyers' interest and at the same time to hold them responsible for the duties enjoined upon them under the said statute. We are not absolving the home buyers from the discharge of their liability if any. At the same time, they have the right of enforcement of their right for compensation due to undue delay in completion of the project."

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उक्त आब्जर्वेशन में यह भी स्पष्ट किया गया है कि रेरा के प्राविधान गृहकेताओं के लिए लाभकारी हैं और किसी प्रकार के विश्वासघात होने से आवंटियों के हितों को संरक्षित करने के लिए हैं एवं बिल्डिंग को पूर्ण कराने हेतु निगरानी का कार्य रेरा का है और पक्षकारों के कर्तव्यों एवं उत्तरदायित्व अधिनियम में तय किये गये हैं। यह भी लाभ दिया गया है कि परियोजना विलम्ब होने पर गृहकेताओं का यह अधिकार होगा कि वह विलम्ब के लिए परियोजना पूर्ण होने तक नियमानुसार ब्याज पा सके।

इसी के पश्चात् पुनः रेरा के सम्बन्ध में माननीय सर्वोच्च न्यायालय द्वारा सिविल अपील संख्या-43/2019 "पायनियर अर्बन लैन्ड एंड इन्फ्रास्ट्रक्चर लिमिटेड एवं अन्य बनाम यूनियन ऑफ इंडिया एवं अन्य" में दिनांक 09.08.2019 को आदेश के पृष्ठ संख्या-86 के प्रस्तर-29 में निम्नवत् उल्लेख किया है:-

"The object of RERA is to see that real estate projects come to fruition within the stated period and to see that allottees of such projects are not left in the lurch and are finally able to realise their dream of a home, or be paid compensation if such dream is shattered, or at least get back monies that they had advanced towards the project with interest. At the same time, recalcitrant allottees are not to be tolerated, as they must also perform their part of the bargain, namely, to pay instalments as and when they become due and payable."

उक्त आदेश में महत्वपूर्ण आब्जर्वेशन यह दिया गया है कि रेरा का लक्ष्य है कि वह अपनी निगरानी एवं देखरेख में प्रमोटर्स द्वारा भू-सम्पदा परियोजना को एक निर्धारित अवधि में फलस्वरूप पूर्ण करा ली जाये, जिससे कि आवंटी अपने फ्लैट्स पाने से वंचित न हो जाये और उन्हें अपने सपनों का घर मिल सके, साथ ही साथ दुर्दम्य (Recalcitrant) आवंटियों को भी परियोजना पूर्ण कराने का सहयोग न करने में उत्तरदायित्व माना है। यह भी कहा गया है कि आवंटी अपने कर्तव्यों को सम्यक रूप से पूर्ण करें, मुख्य रूप से जैसे कि किश्तों का समय से भुगतान करना सुनिश्चित कर लें, जिससे कि परियोजना को पूर्ण किया जा सके।

ऐसे में उपरोक्त माननीय सर्वोच्च न्यायालय द्वारा निर्धारित की गयी विधि व्यवस्था के अनुसार यह स्पष्ट है कि रेरा का मुख्य उद्देश्य, परियोजना को फलस्वरूप प्रमोटर्स द्वारा पूर्ण कराना और आवंटियों द्वारा सम्यक रूप से अपनी किश्तों का भुगतान सुनिश्चित कर लिया जाना, जिससे कि परियोजना को निर्धारित

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अवधि में पूर्ण कराया जा सके। आवंटियों के हितों को संरक्षित करने के लिए परियोजना विलम्ब होने पर ब्याज का लाभ भी आवंटियों को देय होगा, परन्तु इससे पूर्व शिकायतकर्ता का यह भी उत्तरदायित्व होगा कि वह अपनी किश्तों का समय से भुगतान करें।

भा. उच्च न्यायालय एवं सर्वोच्च न्यायालय द्वारा उक्त प्रस्तारों में उद्धरित "ऑब्जरवेशनस्" एवं रेरा एक्ट की समग्र व्यवस्था को देखते हुए यह भी स्पष्ट है कि यदि विलम्ब के प्रत्येक मामले में धनराशि लौटाने का ही निर्णय लिया जाये तो निश्चय ही यह अधिनियम के "ऑब्जेक्टिव" तथा "स्कीम" के अनुरूप न होगा। रिफण्ड का निर्णय लेते समय प्रत्येक मामले की "यूनीकनेस" प्रकरण के समस्त तथ्यों यथा "कन्स्ट्रक्शन" की स्थिति, कम्प्लीशन की "टाईम लाईन", प्रमोटर्स के द्वारा ऑफर ऑफ पजेशन के "कमिटमेंट" की स्थिति, अन्य "स्टेक होल्डर्स", विशेष रूप से परियोजना के साथ बने रहने वाले "एलॉटीज" पर प्रभाव, "प्रस्तावित पजेशन डेट" के विषय में "कन्सेन्सस्" आदि पर विचार किया जाना न्यायहित में होगा। चूंकि विपक्षी द्वारा दाखिल प्रतिवाद पत्र में कहा गया है कि शिकायतकर्ता को जून 2021 तक ओ.सी. सहित कब्जा दे दिया जायेगा, जो कि अब बीत चुकी है और सुनवाई के दौरान दिनांक 06.07.2021 को विपक्षी द्वारा यह कहा गया है कि वह शिकायतकर्ता को दिसम्बर 2021 तक कब्जा दे देंगे, जो कि निकट की तिथि है। उचित होगा कि शिकायतकर्ता आगामी दिसम्बर 2021 तक यूनिट का कब्जा लेने पर विचार करें। उसके बाद यूनिट के भविष्य में उपयोग के सम्बन्ध में वे स्वयं निर्णय ले सकते हैं। वैसे भी शिकायतकर्ता द्वारा परियोजना में यूनिट के कब्जे हेतु धनराशि का निवेश किया गया था, जिसका उपयोग परियोजना के निर्माण में किया गया है। निश्चय ही परियोजना में बने रहने की दशा में एलॉटीज को विलम्ब हेतु नियमानुसार ब्याज प्रमोटर्स द्वारा देय होगा।

पत्रावली पर विपक्षी द्वारा दाखिल अनुबन्ध दिनांक 27.10.2012 के प्रस्तर-19(a) में निम्नलिखित उल्लेख किया गया है :-

19(a). That the Developer shall complete the development/construction of the Flat within 30 months from the date of signing of agreement which may vary for $\pm$ 6 months.

अतः उपरोक्तानुसार शिकायतकर्ता को अनुबन्ध की तिथि 27.10.2012 से 30 + 6 माह (ग्रेस पीरियड) अर्थात् दिनांक 27.10.2015 तक फ्लैट का कब्जा दिया जाना था, किन्तु विपक्षी द्वारा उक्त निर्धारित अवधि में कब्जा नहीं दिया गया है।

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इसके अतिरिक्त फोर्स मैज्योर के मद में विपक्षी कुल 68 दिन की अवधि के लिए लाभ पाने का अधिकारी है। (जैसा कि निस्तारण बिन्दु संख्या-2 में वर्णित है।)

जहाँ तक किस अवधि तक का ब्याज दिलाये जाने का प्रश्न है। इस सम्बन्ध में सिविल अपील सं० 6649-50/2018 "सुपरटेक लिमिटेड बनाम रजनी गोयल" में माननीय उच्चतम न्यायालय द्वारा अभिनिर्धारित किया गया है कि:-

"the period of Interest should close on April 2016 when the Full Occupancy Certificate was obtained as per the admission of the Respondent - Purchaser herself in Para 4(j) of the Consumer Complaint, wherein she has admitted that the Appellant - Builder had obtained the Completion Certificate as late as April 2016. The Respondent - Purchaser could not have any further grievance after April 2016 with respect to delay in handing over possession. The Respondent - Purchaser ought not to be allowed to reap the benefits of her own delay in taking possession. "

उपरोक्त विधि व्यवस्था के अनुसार ओ.सी./सी.सी. अथवा कब्जा ऑफर किये जाने की तिथि, जो भी बाद में हो तक शिकायतकर्ता विलम्ब ब्याज पाने का अधिकारी होगा।

ऐसी दशा में शिकायतकर्ता को दिनांक 27.10.2015 + 68 दिन अर्थात् 03.01.2016 से ओ.सी./सी.सी. प्राप्त किये जाने की तिथि अथवा कब्जा ऑफर किये जाने की तिथि, जो भी बाद में हो तक विलम्बित अवधि का ब्याज दिलाया जाना न्यायोचित प्रतीत होता है।

जहाँ तक ब्याज देयता का प्रश्न है, माननीय बॉम्बे उच्च न्यायालय द्वारा "नीलकमल रियलटर्स सबअर्बन प्रा.लि. आदि बनाम यूनियन ऑफ इंडिया" के वाद में अभिनिर्धारित किया गया है कि :-

"Section 18(1)(b) lays down that if the promoter fails to complete or is unable to give possession of an aptment due to discontinuance of his business as a developer on account of suspension or revocation of the registration under the Act or for any other reason, he is liable on demand to the allottees, in case the allottee wishes to withdraw from the project, without prejudice in this behalf including compensation. If the allottee does not intent to withdraw from the project he shall be paid by the promoter

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interest for every month's delay till handing over of the possession. The requirement to pay interest is not a penalty as the payment of interest is compensatory in nature in the light of the delay suffered by the allottee who has paid for his apartment but has not received possession of it. The obligation imposed on the promoter to pay interest till such time as the apartment is handed over to him is not unreasonable."

अतः उपरोक्त निर्णय के आलोक में यह स्पष्ट है कि उ०प्र० रेरा के प्राविधानों के अन्तर्गत प्रमोटर व क्रेता के बीच किये गये अनुबंध के अनुरूप विलम्ब तथा मूल धनराशि पर ब्याज देय होगा, क्योंकि प्रमोटर्स द्वारा उक्त धनराशि का उपभोग किया गया है।

रेरा एक्ट की धारा 2(za) में प्राविधान है कि :-

(za) "interest" means the rates of interest payable by the promoter or the allottee, as the case may be.

Explanation.—For the purpose of this clause—

(i) the rate of interest chargeable from the allottee by the promoter, in case of default, shall be equal to the rate of interest which the promoter shall be liable to pay the allottee, in case of default;

(ii) the interest payable by the promoter to the allottee shall be from the date the promoter received the amount or any part thereof till the date the amount or part thereof and interest thereon is refunded, and the interest payable by the allottee to the promoter shall be from the date the allottee defaults in payment to the promoter till the date it is paid;

यह भी उल्लेखनीय है कि अनुबंध के प्रस्तर-19(c) के अनुसार परियोजना के विलम्ब की अवधि में 5/- रुपये प्रतिवर्ग फुट प्रतिमाह की दर से धनराशि का प्राविधान है, जिसके अनुसार शिकायतकर्ता धनराशि पाने का अधिकारी है, रेरा के प्राविधानों के अनुसार जिस दर से विपक्षी द्वारा धनराशि प्राप्त की गयी है उसी दर से धनराशि देने का प्राविधान है। मू-सम्पदा (विनियमन एवं विकास) अधिनियम, 2016 की धारा-18 दिनांक 01.05.2017 को अधिसूचित हुई, जिसके सम्बन्ध में उ०प्र० आवास एवं शहरी नियोजन अनुभाग-2 की अधिसूचना दिनांक 03.05.2017 से उ०प्र०

में रेगुलेटरी अथॉरिटी के रूप में कार्य करने की स्वीकृति राज्यपाल, महोदय ने दिनांक 01.05.2017 से प्रदान की अर्थात् दिनांक 01.05.2017 से भू-सम्पदा (विनियमन एवं विकास) अधिनियम, 2016 लागू हुआ है। इस अधिनियम का प्रवर्तन प्रोस्पेक्टिव है। अतः दिनांक 01.05.2017 से पूर्व की अवधि के लिए विलम्ब ब्याज की गणना अनुबन्ध के प्रावधानों के अन्तर्गत की जायेगी और दिनांक 01.05.2017 से आगे की अवधि के लिए विलम्ब ब्याज की गणना अधिनियम के प्रावधानों के अधीन की जायेगी।

जहाँ तक देय ब्याज दर का प्रश्न है, तो राज्य सरकार द्वारा भू-सम्पदा (विनियमन एवं विकास) अधिनियम 2016 के अधीन दिनांक 17.10.2018 को भू-सम्पदा (विनियमन और विकास) (विक्रय/पट्टा के लिए करार) नियमावली 2018 अधिसूचित की गयी है। इसमें संलग्नक के रूप में दिये गये विक्रय/पट्टा विलेख के प्रारूप के प्रस्तर 9 में प्रमोटर्स के डिफाल्ट प्रकरण (Events of default) परिभाषित है, जिसमें प्रस्तर 9.2(ii) में प्रमोटर के डिफाल्ट होने की स्थिति में आवंटनी हेतु प्राविधानित है कि:-

"The Allottee shall have the option of terminating the Agreement in which case the Promoter shall be liable to refund the entire money paid by the Allottee under any head whatsoever towards the purchase of the apartment, along with interest at the rate equal to MCLR (Marginal Cost of Lending Rate) on home loan of State Bank of India + 1% unless provided otherwise under the Rules. within forty-five days of receiving the termination notice:"

यही दर आवंटियों के द्वारा डिफॉल्ट की स्थिति में भी प्रस्तर 9.3(i) में निर्धारित है। उक्त प्राविधान को दृष्टिगत रखते हुए आवंटनी को MCLR+1 प्रतिशत की ब्याज दर पर विलम्बित अवधि का ब्याज दिलाया जाना न्यायोचित प्रतीत होता है। यह भी स्पष्ट किया जाता है कि यदि शिकायतकर्ता की कोई धनराशि अतिदेय है, तो उस पर विपक्षी भी MCLR+1 प्रतिशत की दर से ही ब्याज प्राप्त कर सकता है। रेरा की धारा-2(za)(i) में भी यही ब्याज की परिभाषा दी गयी है। तदनुसार बिन्दु संख्या-3 निस्तारित किया जाता है।

उपरोक्त बिन्दुओं का निस्तारण करते हुए निम्न आदेश पारित किये जाते हैं।

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आदेश

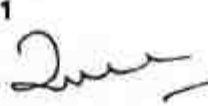
1. प्रस्तुत प्रकरणों में दी गयी धनराशि के रिफण्ड का अनुतोष निरस्त किया जाता है।
2. शिकायतकर्तागण को सुझाव दिया जाता है कि वे यूनिट का कब्जा लेने पर विचार करें। ऐसी स्थिति में विपक्षी, शिकायतकर्तागण को दिनांक 31.12.2021 तक यूनिट्स का कब्जा दें और देय स्टाम्प शुल्क प्राप्त कर नियमानुसार रजिस्ट्री कराना सुनिश्चित करें।
3. विपक्षी, शिकायतकर्ता को दिनांक 03.01.2016 से दिनांक 30.04.2017 तक 5/- रुपये प्रति वर्ग फुट प्रतिमाह की दर से व दिनांक 01.05.2017 से ओ.सी./सी.सी. प्राप्त किये जाने की तिथि अथवा कब्जा ऑफर किये जाने की तिथि, जो भी बाद में हो, तक की अवधि पर शिकायतकर्ता द्वारा जमा धनराशि पर विलम्ब ब्याज के रूप में MCLR+1 प्रतिशत ब्याज अदा करना सुनिश्चित करें। ब्याज की यह धनराशि अंतिम भुगतान की देय धनराशि में समायोजित की जायेगी। ब्याज की धनराशि देय धनराशि से अधिक होने पर शिकायतकर्ता को वापस की जायेगी। फोर्स मैज्योर पीरियड को दृष्टिगत रखते हुए दिनांक 25.03.2020 से दिनांक 25.09.2020 तक परियोजना में हुए विलम्ब हेतु ब्याज की गणना नहीं की जायेगी। साथ ही इस अवधि में शिकायतकर्ता द्वारा यदि कोई अतिदेय (Over Dues) है, तो उस पर भी इस अवधि का ब्याज देय न होगा। अन्य शिकायतकर्तागण के प्रकरण में उपरोक्तानुसार अनुबन्ध के अनुरूप विलम्ब ब्याज की गणना की जायेगी।
4. विपक्षी को यह निर्देशित किया जाता है कि रेरा अधिनियम, 2016 की धारा 2(za)(i) के अनुसार यदि रेरा लागू होने के बाद कोई ब्याज दर आवंटी के डिफॉल्ट से प्रमोटर द्वारा लिया जाता है, तो उसी दर से ब्याज प्रमोटर द्वारा डिफॉल्ट किये जाने पर भी आवंटी को दिया जायेगा। अतः विलम्बित भुगतान पर शिकायतकर्ता द्वारा भी MCLR+1 प्रतिशत की ब्याज दर से ब्याज देय होगा। यदि इससे अधिक दर से कोई धनराशि रेरा लागू होने के बाद आवंटी से विलम्ब हेतु ली गयी है, तो विलम्बित अवधि हेतु ब्याज की धनराशि की भी उसी दर से गणना की जायेगी।





5. इस आदेश की एक-एक प्रति सम्बन्धित पत्रावलियों पर रखी जाये एवं इस आदेश में प्रतिपादित सिद्धान्त के अनुरूप धनराशि व ब्याज की प्रत्येक मामले में गणना की जायेगी।
6. इस आदेश का उल्लंघन भू-सम्पदा (विनियमन तथा विकास) अधिनियम, 2016 की धारा-63 तथा अन्य सुसंगत प्राविधानों के अन्तर्गत दंडनीय होगा। आदेश पोर्टल पर अपलोड किया जाये।
7. यदि विपक्षी द्वारा इस आदेश का अनुपालन नहीं किया जाता है, तो शिकायतकर्तागण को यह अधिकार होगा कि रेश प्राधिकरण के माध्यम से अपने आदेश का कियान्वयन करा सकेंगे।

दिनांक :- 12/X/2021


12.X.21

(राजीव कुमार)

(अध्यक्ष)

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Uttar Pradesh Real Estate Regulatory Authority

Regional Office, H-169, Sector Gamma - 2
Greater Noida City, Gautambuddh Nagar - 201310

No. 807 /U.P. RERA/Project/Rehabilitation/NCR/2023-24

Date: 10/06/2023

Office Order

Uttar Pradesh Real Estate Regulatory Authority vide order No. 2420/UPRERAPRJ6050/PMD/P.R./NCR/2021-22 dated 24th December 2021 had on the basis of the consent of the association of the allottees of the project, namely 'La Galaxia Social Welfare Society', authorized M/s Newtech Promoters and Developers Pvt. Ltd. for completing the remaining construction and development work in the project 'La Galaxia (UPRERAPRJ6050)' by December 2022.

The progress of the project was reviewed by the Project Advisory & Monitoring Committee of U.P. RERA on 13th April 2023. During the review meeting, it was brought to the notice of the committee that the promoter has entered into a MoU with an investor for investment of Rs 15 Cr in the project to complete the entire project. Further, the promoter has committed to complete the Tower A, B, C, D and E by Aug 2023, Tower G by Oct 2023 and Tower F by April 2024.

The promoter M/s Newtech Promoters and Developers Pvt. Ltd. made a request to the committee for recommending to the Authority to extend the period for completion of the project up to April 2024 on the ground of insufficient infusion of funds required for construction and development work. The association also pleaded for granting the extension of period for completing the project on the grounds mentioned by the promoter keeping in view the interest of the allottees to get their houses in near future.

The committee had directed to present the request of the promoter for extension of the timelines for completion of the project before the Authority for appropriate decision. Accordingly, the matter was put up before the Authority in its 120th meeting on 02nd May 2023. The Authority discussed the matter in detail and taking note of the request of the promoter as well as the consent of the association, was of the opinion that the Authority in its 66th meeting on 27th July 2021 had decided to extend the registration of the projects by another 9 months in the NCR region on account of the obstructions by the COVID-19 pandemic and orders of the NGT and Hon'ble Supreme Court. So keeping this obstruction in mind and further keeping in view the need to ensure the completion of the project as per the aspirations of the allottees expressed through their association, it is absolutely reasonable to extend the authorization of the promoter to complete the project by the time requested by it i.e. by April 2024.

The remaining terms and conditions of the original order dated 24th December 2021 shall remain unchanged.


(Rajesh Kumar Tyagi)
Secretary

Number and date as above.

Copy: To the following for information and necessary action at their end:

- 1- Hon'ble Chairman, Uttar Pradesh Real Estate Regulatory Authority.
- 2- Hon'ble Members, Uttar Pradesh Real Estate Regulatory Authority.
- 3- Additional Chief Secretary, Department of Infrastructure & Industrial Development, Govt. of Uttar Pradesh
- 4- Principal Secretary, Department of Housing & Urban Planning, Govt. of Uttar Pradesh.
- 5- Managing Director, UPSIDA.
- 6- Sh. R. D. Paliwal, Conciliation Consultant, Uttar Pradesh Real Estate Regulatory Authority.
- 7- Principal Advisor, Uttar Pradesh Real Estate Regulatory Authority.
- 8- Finance Controller, Uttar Pradesh Real Estate Regulatory Authority.
- 9- Technical Advisor, Uttar Pradesh Real Estate Regulatory Authority.
- 10- Consultant, Project Management Division, Uttar Pradesh Real Estate Regulatory Authority.
- 11- Dy. Secretary, Uttar Pradesh Real Estate Regulatory Authority.
- 12- Manager, Concerned Bank/Financial Institution.
- 13- M/s Newtech Promoters and Developers Pvt. Ltd.
- 14- La Galaxia Social Welfare Society.


(Rajesh Kumar Tyagi)
Secretary





Uttar Pradesh Real Estate Regulatory Authority

Regional Office, H-169, Sector Gamma - 2
Greater Noida City, Gautam Buddh Nagar - 201310

No. 2420 /UPRERAPRJ6050/PMD/P.R./NCR/2021-22

Date: 24 / 12 / 2021

Order under section 8 read with section 11 and 37 of the RERA Act

- 1- The project 'La Galaxia' Reg. No. UPRERAPRJ6050 (herein referred as 'Project'), being developed by M/s Newtech Promoters and Developers Pvt. Ltd. (herein referred as 'Promoter'), is a group housing project located at Plot No. HRA-11, Surajpur Site-C (Extension), Phase-II, district Gautam Buddh Nagar. The Project commenced in August 2014 and comprises 7 towers having 525 sanctioned units in all.
- 2- The completion date of the Project, as declared by the Promoter at the time of registration with Uttar Pradesh Real Estate Regulatory Authority, hereafter called as "Authority", lapsed on 31st December 2018. The Promoter did not seek any extension of registration of the Project under Section 6 of the RERA Act.
- 3- The Promoter failed to complete the Project, within the specified period i.e., 31st December 2018. Although the registration of the Project has lapsed, the Promoter is expressing its intent to complete the Project and approached the Authority for guidance and appropriate directions in the matter.
- 4- As per the information available at the end of the Authority, the overall physical progress of the project is only around 65 percent and since the registration of the project lapsed on 31st December 2018, at this stage it is not possible to facilitate the completion of the project by way of extension of the registration. The only course available for completion of this project can be under the provisions of Section 8 of the Act dealing with the facilitating of such projects by the Authority. It has been provided under Section 8 of the Act that upon lapse of the registration or on revocation of the registration under this Act, the Authority may consult the appropriate Government to take such action as it may deem fit including the carrying out the remaining development work by competent authority or the Association of the allottees or in any other manner as may be determined by the Authority.
- 5- The Authority, using the enabling provisions of the Section 8 of the Act, agreed to consider the request of the Promoter for permitting it to undertake the remaining development work of the

Project if it submitted a convincing proposal to the Authority in this regard jointly with the Association of the Allottees of the Project.

- 6- The allottees of the Project have formed an association under the name as "La Galaxia Social Welfare Society" (herein after called as Association) and got the same registered under the Societies Registration Act, 1860 on 1st January 2020 at Reg No. GBN/08558/2019-2020. The Association also approached the Authority requesting it to intervene and facilitate the completion of the Project so that allottees of the Project could get the possession of the units allotted to them by the Promoter.
- 7- Subsequently, a series of meetings were held with the Promoter and the Association to understand the issues and to arrive at an appropriate strategy for completing the balance development work in the Project. A meeting of the committee, as envisaged under the G.O dated 26th June 2020, was held on 3rd December 2021 under the chairmanship of Sh. Balvinder Kumar, Hon'ble Member, U.P. RERA. The meeting was attended by the Promoter and the Association, wherein a consensus was reached between the parties on the proposal submitted by the promoter for completing the remaining development work in the project as per the provisions of Section 8 of the RERA Act and under the orders and supervision of the Authority. The Promoter was advised to submit the written consent of at least 50 percent of the allottees in the project so that the Authority could consider its request for authorizing it under Section 8 of the Act to undertake the remaining development work in the project.
- 8- The proposal of the Promoter and Association was examined in the Project Management Division of the Authority. The appraisal report of the Project Management Division, based on the information and action plan of the Promoter to complete the project is as follows:
 - a. The Project is a group-housing project located at Plot No. HRA-11, Surajpur Site-C (Extension), Phase-II, district Gautam Buddh Nagar. As per the promoter, there are 7 towers in the project i.e., Tower A, B, C, D, E, F and G together having 525 units.
 - b. The building layout of the project was sanctioned by UPSIDC (presently UPSIDA) on 19th August 2014 for a period of three years which lapsed on 18th August 2017. It has been stated by the Promoter that it has applied for revalidation of the sanctioned plan.
 - c. The construction work in Towers A, B, C and D is almost complete, except sanitary fittings and other miscellaneous works, while in Towers E, F and G, the construction work is still ongoing. The estimated cost of remaining construction and development works in the project is around Rs. 13 cr. In addition to this, an amount of Rs. 2.26 cr is due against

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purchasable FAR and another amount of Rs. 1.09 cr against lease rent payable to UPSIDA. Overall, the cost of completion of the project is estimated to be Rs. 16.35 cr.

- d. Out of 525 units in the project, 507 units have been sold and 18 units are unsold. The balance receivables from existing allottees in the project is estimated to be around Rs. 23.31 cr, while the estimated value of unsold inventory is about Rs. 8.12 cr. Hence, the overall cash inflow of the project is estimated to be around Rs. 31.43.
 - e. Prima facie, the project has positive cash inflows and is also financially viable considering the balance receivables and value of unsold inventory.
 - f. Construction work in the project is ongoing and the promoter has been infusing some capital to keep the work going, although at a slow pace. The promoter has committed to contribute upfront capital of Rs. 0.5 cr within 25 days of the order of authorization under Section 8 of the Act.
 - g. Proposed to complete the remaining development work and provide physical possession in Towers A, B, C, D and E by March 2022. The remaining development work in Towers G and Tower F will be completed by June 2022 and December 2022 respectively. Entire project will be completed by December 2022.
 - h. Demand for balance receivables from the allottees of Tower A, B, C and D has already been raised for a cumulative amount of Rs. 8.26 cr. For Tower E, demand will be raised in two installments i.e., December 2021 and on offer of possession in March 2022. For Tower F, demand will be raised in three installments i.e., January-February 2022, June-July 2022 and on offer of possession in December 2022. For Tower G, demand will be raised in five installments i.e., November 2021, December 2021, January 2022, February 2022 and the last one on offer of possession in March 2022.
- 9- The Project has also been inspected by the Technical Division of the Authority in July 2021, wherein it had been stated that the overall physical progress of the project is around 65 percent and structural work in 6 towers at 100 percent and in one tower at about 55 percent.
- 10- The proposal of the Promoter and the Association was considered by the Authority, along with other relevant facts and documents available at its level, in its meeting held on 14th December 2021. The Authority, after careful and thorough deliberation on the proposal submitted by the Promoter and consented to by the Association and perusal of the recommendations of its Project Advisory & Monitoring Committee based on the report of its officers and the Project Management Division, arrived at the considered view the proposal of the Promoter consented



to by the Association is, prima facie, convincing, and can be accepted in fulfillment of its mandate to facilitate the completion of the Project under the present conditions i.e. where the registration has lapsed and the Authority needs to facilitate the remaining development work in order to protect the interests of the allottees of the Project.

- 11- Therefore, with a view to facilitate the completion of the Project in a time bound manner, to protect the interests of the allottees, the Authority, using the powers conferred upon it under section 8 of the RERA Act read with section 37 of the Act, other enabling provisions of the Act, the Rules and the Regulations made there under, and as per the principle laid down by the Hon'ble Bombay High Court in the Neelkamal Realtors and others vs the Union of India and the Others and in conformity with the U.P. State Government order dated 26th June 2020 stipulating the guidelines to be followed in such matters, resolved to authorize the Promoter, with consent of Association, to undertake the completion of the remaining development and the construction work of the Project, subject to the following terms and conditions:
- a. The Association shall submit, within 15 days of the order, a general body resolution of the Association giving their explicit consent to authorize the Promoter to undertake the remaining development and construction work of the Project.
 - b. A notarized affidavit duly sworn by the Promoter for undertaking to complete the balance development work by December 2022, as given under paragraph 8 of the order. The Promoter shall further submit the written consent of not less than 50 percent of the allottees within 15 days of this order and this order shall come into effect only after submission of such consent. The Promoter shall also contribute to the shortfalls in cash flows, if any, during the course of development and construction of the Project within the timelines as contemplated herein.
 - c. The demand for balance receivables from the allottees of Tower A, B, C and D has already been raised for a cumulative amount of Rs. 8.26 cr. For Tower E, demand will be raised in two installments i.e., December 2021 and on offer of possession in March 2022. For Tower F, demand will be raised in three installments i.e., January-February 2022, June-July 2022 and on offer of possession in December 2022. For Tower G, demand will be raised in five installments i.e., November 2021, December 2021, January 2022, February 2022 and the last one on offer of possession in March 2022.
 - d. The Promoter shall complete the 7 towers in the Project as per the completion plan submitted by it and agreed to by the Association.

- e. The Authority hereby constitutes a Project Advisory and Monitoring Committee under the chairmanship of Sh. Balvinder Kumar, Hon'ble Member, U.P. RERA with CEO, Uttar Pradesh State Industrial Development Authority, Financial Controller U.P. RERA, Technical Advisor U.P. RERA, Conciliation Consultant U.P. RERA, Consultant Project Management Division U.P. RERA, concerned Bank / Financial Institution, the Association and the Construction Consultant appointed by the Authority as members for monitoring of the Project on monthly basis.
- f. The Authority will review the progress of the project on quarterly basis.
- g. The Authority, on its website, will shift the project to the special category of projects under Rehabilitation as per the provisions of Section 8 of RERA Act. The promoter shall continue to update the details of the project, including the quarterly progress report of the project, in stipulated time or as directed by the Authority.
- h. The Promoter shall open a separate account for the project in a scheduled bank which shall be updated on the webpage of the project under the relevant category. The promoter shall deposit all its contribution towards the project, as agreed with the AoA as per this Order, and also all the money received from the allottees as per builder buyer agreements, existing and prospective, or any other funds from any other source including the existing accounts of the Project, time to time, in the separate account and the same shall be utilized only for the work relating to the construction and development of the project and/or any other expenditure directly related to the development, construction and completion of the Project.

Provided that the Promoter shall deposit an upfront amount of Rs. 0.5 cr within 25 days of this order, as agreed, in the separate account, before collecting the balance receivables from the allottees.

Provided further that any withdrawal from the separate account will be as per the provisions of the Act, only after it is certified by an engineer, an architect and a chartered accountant in practice that the withdrawal is in proportion to the percentage completion of the balance work of project. The Promoter shall upload the three certificates on the website of the Authority while filing the quarterly progress report of the project.

Provided further that the promoter shall get the separate account of the project audited at the end of the financial year and annual audit report shall be uploaded on the website of the Authority.



- i. The Association and the Promoter should suitably settle the issues of payment of interest for delay and charging in lieu of additional area, if any (other than area as mentioned in builder buyer agreements) to be charged as per the builder buyer agreement at the time of possession after the balance development work of the project is completed and the occupancy certificate has been applied for along with all required/statutory certificates and NOCs. Any dispute between the AoA and the Promoter shall be amicably settled through the good offices of the project advisory and monitoring committee constituted by the Authority in this behalf.
- j. The promoter shall approach the concerned competent regulatory / statutory authorities for seeking / renewing such permissions / approvals for completion of balance development work and for handing over possession of units to allottees as may be required.
- k. The promoter may appoint/engage such contractors, vendors or suppliers as may be necessary for the completion of the project, by following transparent method of tendering etc., as the case may be. The same will, however, be audited by the Construction Consultant appointed by the Authority for this project.
- l. The Authority shall appoint a Construction Consultant for the concurrent audit till the completion of the project. The cost thereof shall be met from the receipts of the project.
- m. The promoter shall be bound by the terms and conditions of the existing and future agreements for sale and shall be responsible for completion of the project as per the specifications and within the stipulated time,
- n. The promoter shall be responsible for all relevant statutory compliances in order to complete the balance development work and handover the possession of the units to the allottees.
- o. The AoA, the promoter, the allottees and all others connected with the development and completion of the project shall be bound by these orders and all other orders as may be issued by the Authority in this regard from time to time.
- p. The promoter shall ensure that proposed sale price cannot be lower than the floor price quoted by the promoter in their cash inflow. The promoter, however, shall not have any discretion to offer new rebates / discounts to any of the buyers, existing or prospective. All the matters relating to the sale price of the unsold units will be audited by the Construction Consultant who shall submit its report to the Authority at the end of every quarter.

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- q. Since the project is being rehabilitated under Section 8 of the RERA Act by the Promoter with the consent of the majority of the allottees and the Association, it is understood that no allottee of the project shall withdraw from it during the course of the development of the remaining work of the project. However, if under extraordinary circumstances, some allottee of the Project withdraws from it, the amount due to be returned to such allottee shall not be returned from the separate account this project, rather the same may be returned from the other sources of the Promoter, or alternately the amount due to such allottees would continue to be a charge on the Project and will be returned after the completion of the Project along with interest admissible as per the orders of the Authority.
- r. The promoter, after completion of the project, shall apply to the competent authority for occupancy certificate as provided under local laws and offer possession to the allottees.

This order issued with the approval of the Authority.


(Rajesh Kumar Tyagi)

Secretary

Number and date as above.

Copy: To the following for information and necessary action at their end:

- 1- Hon'ble Chairman, Uttar Pradesh Real Estate Regulatory Authority.
- 2- Sh. Balvinder Kumar, Hon'ble Member, Uttar Pradesh Real Estate Regulatory Authority.
- 3- Hon'ble Members, Uttar Pradesh Real Estate Regulatory Authority.
- 4- Additional Chief Secretary, Department of Infrastructure & Industrial Development, Govt. of Uttar Pradesh
- 5- Principal Secretary, Department of Housing & Urban Planning, Govt. of Uttar Pradesh.
- 6- Chief Executive Officer, Uttar Pradesh State Industrial Development Authority.
- 7- Sh. R. D. Paliwal, Conciliation Consultant, Uttar Pradesh Real Estate Regulatory Authority.
- 8- Principal Advisor, Uttar Pradesh Real Estate Regulatory Authority.
- 9- Finance Controller, Uttar Pradesh Real Estate Regulatory Authority.
- 10- Technical Advisor, Uttar Pradesh Real Estate Regulatory Authority.
- 11- Consultant, Project Management Division, Uttar Pradesh Real Estate Regulatory Authority.
- 12- Manager, Concerned Bank/Financial Institution.
- 13- M/s Newtech Promoters and Developers Pvt. Ltd.
- 14- La Galaxia Social Welfare Society


(Rajesh Kumar Tyagi)

Secretary

Date/Time: 2023-02-04 23:54:13

Owner Name : M/S AASHIRAMA PROMOTERS AND DEVELOPERS PVT LTD

Owner Email ID : info@newtechgroup.co

Orange GST Number: 09AACJAJ111112W

Job ID: 106413
 Job Title: Senior Software Engineer
 Location: San Francisco, CA
 Department: Engineering
 Job Type: Full-time
 Job Category: Software Development
 Job Status: New

Vector No. Section 1

Regional Office: Surajpur

Complete Print Side's Address: HRA-3

Property Use: R2-Residential Flatted

Prod. area AS per Physical Measurement : 1.543856

Date of Lease Deed : 2021-09-10

- Business Letter
- Leave Card
- Transfer Card
- Program of Building/EO Tag
- Reservation Certificate
- Location Plan / Site Plan / Key Plan
- Leave Card Registration
- Leave Card Payment Slip
- Valid Time Expired Card
- Attendance-1
- Attendance-2
- Attendance-3
- Attendance-4
- Attendance-5
- Attendance-6
- Attendance-7
- Attendance-8 Identity Card
- Attendance-9
- Attendance-10
- Attendance-11
- Attendance-12
- Attendance-13
- Attendance-14
- Approved / Not Approved Draw

Submitted

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Summary

Submitted

Submission

Abstract

Subline

Schmidt

Subscription

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Journal of Management Inquiry

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9. *Staphylococcus aureus*

Editorial

Summary

1. <i>Chlamydomonas reinhardtii</i>	1000000000
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Supplemental Table 3 (continued)

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Figure 1. Schematic diagram of the experimental setup.

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Dated: 16/09/2024

To
The Regional Manager,
U. P. State Industrial Development Corporation Ltd.
Administrative Building, Epip, I.A. Surajpur (Site-V), Kasna
Distt. - Gautam Budh Nagar
Greater Noida - 201306 (U.P.)

Subject:

Regarding Obtaining part Occupancy Certificate for the Housing Project "Newtech La Galaxia" at Group Housing Plot No. HRA-11, Site-C, Extn. Phase-II, Surajpur, Greater Noida, District-Gautam Budh Nagar, U.P., leased to M/s Aashiyana Promoters and Developers Private Limited, Map Permit No. 506/SIDC/RMS/Building Map dated: 04.05.2012 and re sanctioned vide letter no. 189/SIDC/ ATP dated 19.08.2014.

Dear Sir,

Please find enclose herewith the following documents for issue of part occupancy certificate of the above mention project:

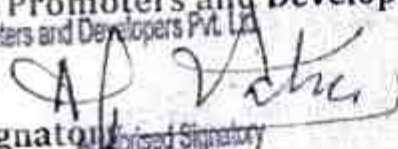
1. One set part completion drawings Tower A to D (Drawings No. C01/1 to C15/1. Total No.-15)
2. Annexure 6 (For Structural Stability Certificate)
3. Annexure 8 (Form for Completion Certificate for Building Work)
4. Annexure 11 (A)
5. Annexure 11 (B) (Building Information Schedule)
6. Annexure 11 (C) (Certification of Compliance of Safety Standards Building Permit)
7. Annexure 11 (D) (Completion Plan)
8. Annexure 12 (Form for Occupancy Certificate for Building Work during extended completion notice period)
9. Annexure 13 (Form for Sanction or refusal of Building Permit)
10. Annexure 14 (Format for Issuance of Occupancy Certificate)
11. Annexure 14A (Form for Temporary Occupancy Certificate)
12. Structural Stability Certificate
13. L.D.A Certificate

- 4.. Board Resolution for Authorized Signatory
- 15.. Fire NOC
- 16.. Electrical Safety Certificate
- 17.. Lift NOC
- 18.. Structural Design Certificate
- 19.. Environment NOC
- 20.. Airport Authority NOC
- 21.. Photographs of Site
- 22.. Map Re-Sanctioned Letter
- 23.. Site Plan
- 24.. Possession Certificate
- 25.. Lease Deed
- 26.. Allotment Letter

You are requested issue us the part occupancy certificate of the above mention project at the earliest and also allow the status of deemed approved project "Newtech La Galaxia" in view of the notification dated 16.09.2019.

Thanking you!!

For Aashiyana Promoters and Developers Pvt. Ltd.
For Aashiyana Promoters and Developers Pvt. Ltd.

Authorized Signatory 
Authorized Signatory



Trackon

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Phone : 011-45883555
Web : www.trackon.in

A-54, Naraina Industrial Area, Phase-I, New Delhi-110028
CIN : U63013DL2002PTC111871

100268401148

Track your shipment



Prudent Express

Trackon



CONSIGNOR

Ca - Galaxia

CONSIGNEE

Neeraj Vohra

ORIGIN

DESTINATION

DOX / N.DOX

PCS

WEIGHT

AIR / SURFACE

COURIER CHARGES

RISK CHARGES

GST

TOTAL

CASH ☐

CREDIT ☐

SHIPPER'S COPY

Received by TCPL

I warrant that all details given herein are true and correct. I accepted the terms of carriage.

Received Pkts/Pcrls in order & good Condition

Name (Please affix your stamp)

Signature

Sender's Signature

Date

Time

FOR YOUR PERSONAL AND VALUABLE ITEMS, USE OUR EXPRESS SERVICE - PRIME TRACK.

CANCELLATION LETTER

Dated: 12 June 2024

To:

Mr. Neeraj Vohra
S/o MR. VIJAY KUMAR VOHRA
R/o 3T/308 AWHO, GURJINDER VIHAR, GREATER NOIDA

Sub: **Final Cancellation Letter in respect of allotted flat vide Flat No. F-1103, Tower-F, at "Newtech La-Galaxia", Plot No. HRA - 11, 1A, Surajpur Site - C, Greater Noida (U.P).**

Dear Sir,

With reference to our repeated requests reminders, telephonically as well as in writing vide letter 31.01.2024, 04.03.2024, 15.04.2024 and 16.05.2024, for payment of an outstanding demand of dues in respect of Flat No. F-1103, Floor - 11th, Tower - F, in the project "Newtech La-Galaxia", Plot No. HRA - 11, 1A, Surajpur Site - C, Greater Noida (U.P). We have not received any sum towards the remittance of your outstanding dues.

You are aware that you have not complied with your commitment, thereby causing immense financial losses to our company.

As you know that project "Newtech La-Galaxia" will be completed under the rehabilitation scheme under Section-8 of RERA Act vide order dated 24.12.2021.

The completion work is in full swing. As per record you have defaulted in making payment inspite of demand letter. The default seems to be intentional & deliberate.

It was decided by RERA Official that if allottee fails to pay outstanding demand for three consecutive month, the builder has right to cancel the allotted flat and on cancellation of allotment for non-payment of outstanding installment, a refund will be initiated if any after the same unit is resold or entire project is complete.

Hence, in view of the above your allotted flat stands cancelled due to non-payment of outstanding due & builder has right to sell the allotted flat in open market.



Aashiyana Promoters and Developers Pvt. Ltd

Trackon

SWIFT SAFE SURE

A-84, Narsing Industrial Area, Phase-I, New Delhi-110028
GIN: U63013DL2002PTCH13971

Phone: 011-45595000
Web: www.trackon.in



100288401157

Track your shipment



Track your shipment



Track your shipment

CONSIGNOR

La Galaxia

CONSIGNEE

Neeraj Kohla

ORIGIN

DESTINATION

DOX / MDOX

PC

WRIGHT

AIR / SURFACE

COURIER CHARGES

RISK CHARGES

GST

TOTAL

CASH ☐

CREDIT ☐

SHIPPER'S COPY

Received by TCPL

I warrant that all details given herein are true and correct. I accepted the terms of carriage.

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(Signature)

(Name)

(Please affix your stamp)

(Signature)

(Name)

(Please affix your stamp)

(Signature)

(Name)

FOR YOUR PERSONAL AND VALUABLE ITEMS, USE OUR EXPRESS SERVICE - PRIME TRACK.

REMINDER 2 LETTER

Customer ID: NT/GLX/F 1103
Mr. Neeraj Vohra
37/308 AWHO, GURJINDER VIHAR, GREATER NOIDA
MO: 9871037773, 9871037773
Email: NEERAJVOHRA2004@yahoo.com

M/s Aashiyana Promoters & Developers Pvt. Ltd.
Regd. Office: Unit 219, S/F, Vasundhara Enclave, Plot No.1,
Vardhman Sunrise Plaza LSC, Delhi - 110096
Tel: 9818849921
Email: info@newtechgroup.co
Web: www.newtechgroup.co
State: Uttar Pradesh
State Code: 09
GSTIN: 09AAGCA21112W
CIN No.: U45400DL2007PTC163513
Dated: 16 May 2024

Cust. ID: NT/GLX/F 1103 PROVISIONAL INVOICE To, Mr. NEERAJ VOHRA R/o 37/308 AWHO, GURJINDER VIHAR, GREATER NOIDA Mobile no.: 9871037773 Booking
Date: 15 Sep 2012.

Subject: Request for payment towards your Unit No. F-1103 having Super Area of approx 1395 Sq.ft Booked at "Newtech La Galaxia" at Plot No. HRA-11, Surajpur
Site C, Phase-II, Gr. Noida.

Dear Customer,

You have been allotted a Unit No. F-1103 on 11th Floor in Tower-11 being developed on Plot No. HRA-11, Surajpur Site C, Phase-II, Gr. Noida. You have booked the
referred Unit in "Newtech La Galaxia" Group Housing Complex under Fixed Payment Plan.

				Receivable						
S. No	Particulars	Head	Due Date	Installment	S.Tax	CGST	SGST	GST	Interest	Total Installment
1	ON START OF PLASTER WORK	Basic Price	31 Jan 2024	0	0	0	0	0	28,052	28,052
2		Dual Meter Charges		12,500	0	750	750	1,500	0	14,000
3		IFMS		17,438	0	0	0	0	0	17,438
4		Lease Rent		59,288	0	3,557	3,557	7,114	0	66,402
5		Other Charge		37,500	0	2,250	2,250	4,500	0	42,000
6		Park or Road or Corner Facing		34,875	0	2,093	2,093	4,186	0	39,061
7	Previous Dues			31,03,800	98,949	9,311	9,311	18,622	53,488	32,74,853
Total Receivable Amount				32,65,401	98,949	17,961	17,961	35,922	81,540	34,81,812
Total Received Amount				₹ 30,47,559						
Total Outstanding Amount				₹ 4,34,253						
Total Outstanding Amount (In Words)				Rupees Four Lakh Thirty Four Thousand Two Hundred Fifty Three Only.						

Your demand due date is 31 Jan 2024, we are requested to remit the total dues of Rs. 4,34,253/- (Rupees Four Lakh Thirty Four Thousand Two Hundred Fifty
Three Only) in favour of AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD. Payable at Noida within 10 days to avoid penal interest.

Kindly note that in case of non-receipt of due amount within stipulated time, Interest @ 18 % p.a. shall be charged as per company's policy on the delayed
payment.

Yours faithfully,

Thanking you of our best services always
AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD.



- This invoice is provisional. For any delayed in payment interest will be charged 18 % p.a. which will be calculated & communicated separately, and the
final interest (if Any) will be Calculated at the time of receiving NOC.
- Helpline No: 9818849921
- Please ignore this letter in case, the payment has been already made.
- Any delay in payment head of tax will be charge @ 48% per month (Maximum)*

Aashiyana Promoters And Developers Pvt. Ltd. (CIN : U45400DL2007PTC163513
Site Office: HRA- 11, 1A, Surajpur Site - C, Greater Noida (U.P.) | E-mail : Info@newtechgroup.co | Ph : 0120-4229521

Trackon

SWIFT SAFE CURS

A-04, Nizamine Industrial Area, Phase-I, New Delhi-110028
CIN : U05013DL2002PTC113971

Phone : 011-45881800
Web : www.trackon.in



100268401166

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CONSIGNOR

CONSIGNEE

ORIGIN

DESTINATION

DOX / NOOX

WEIGHT

COURSER CHARGES

RISK CHARGES

GST

TOTAL

CASH ☐

CREDIT ☐

SHIPPER'S COPY

Received by TCPL

I warrant that all details given herein are true and correct. I accepted the terms of carriage.

Sender's Signature

Received by consignee in order & good condition

Name (Please affix your stamp)

Signature

Date: Time:

FOR YOUR PERSONAL AND VALUABLE ITEMS, USE OUR EXPRESS SERVICE - PRIME TRACK.

REMINDER LETTER

Customer ID: NT/GLX/P 1103
Mr. Neera Vohra
37/108 AWHO, GURJINDER VIHAR, GREATER NOIDA
MO: 9871037773, 9871037773
Email: NEERAVOHRA2004@yahoo.com

M/s Aashiyana Promoters & Developers Pvt. Ltd.
Regd Office/Unit 112, 5/F, Varunbhara Enclave, Plot No. 1,
Verdhaman Sunrise Plaza ISE, Delhi - 110096
Tel: 9818649921
Email: info@newtechgroup.co
Web: www.newtechgroup.co
State: Uttar Pradesh
State Code: 09
GSTIN: 09AAAC3211132W
CIN No.: U45400DL2007PTC163513
Dated: 15 April 2024

Customer ID: NT/GLX/P 1103 PROVISIONAL INVOICE To: Mr. NEERA VOHRA R/o 37/108 AWHO, GURJINDER VIHAR, GREATER NOIDA Mobile no: 9871037773 Booking
Date: 15 Sep 2012

Subject: Request for payment towards your Unit No. F-1103 having Super Area of approx 1395 Sq.ft Booked at "Newtech La Galaxia" at Plot No. HRA-11, Surajpur Site C, Phase-II, Gr. Noida.

Dear Customer,

You have been allotted a Unit No. F-1103 on 11th Floor in Tower F being developed on Plot No. HRA-11, Surajpur Site C, Phase-II, Gr. Noida. You have booked the
related Unit in "Newtech La Galaxia" Group Housing Complex under Flat Payment Plan.

S No.	Particulars	Head	Due Date	Receivable						
				Installment	S.Tax	CGST	SGST	GST	Interest	Total Installment
1	ON START OF PLASTER WORK	Basic Price	31 Jan 2024	0	0	0	0	0	28,052	28,052
2		Dual Meter Charges		12,500	0	750	750	1,500	0	14,000
3		IFMS		17,438	0	0	0	0	0	17,438
4		Lease Rent		59,288	0	3,557	3,557	7,114	0	66,402
5		Other Charge		37,500	0	2,250	2,250	4,500	0	42,000
6		Park or Road or Corner Facing		34,875	0	2,093	2,093	4,186	0	39,061
7	Previous Dues			31,03,900	38,949	9,311	9,311	18,622	52,488	31,73,859
	Total Receivable Amount			32,65,401	38,949	17,961	17,961	35,922	80,540	34,30,823
	Total Received Amount									₹ 4,33,253
	Total Outstanding Amount									
	Total Outstanding Amount (In Words)									Rupees Four Lakh Thirty Three Thousand Two Hundred Fifty Three Only.

Your demand due date is 31 Jan 2024, we are requested to remit the total dues of Rs. 4,33,253/- (Rupees Four Lakh Thirty Three Thousand Two Hundred Fifty
Three Only) in favour of AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD. Payable at Noida within 10 days to avoid penal interest.

Kindly note that in case of non-receipt of due amount within stipulated time, interest @ 18% p.a. shall be charged as per company's policy on the delayed

Statement

Thank you for your best services always.

AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD.

Signature
Date: 15/04/2024

This invoice is provisional, for any delayed in payment interest will be charged 18% p.a. which will be calculated & communicated separately, and the

Final Interest (if Any) will be Calculated at the time of releasing ROG

- Reference No: 9818649921
- Please ignore this letter in case, the payment has been already made.
- Any delay in payment head office will be charge @ 48% per month (Maximum)

3/5/2024

Newtech group <erp@newtechgroup.co>

Galaxia Demand Letter Tower F

NEERA/VOHRA2004@yahoo.com <neerajvohra2004@yahoo.com>

Sir/Madam,

Please find attachment.

Thanks and regards

Newtech Group

Contact No. 0120-4229520

- F-1103.pdf (478 KB)



Customer ID: WT/GX/F 1108
M/s Newtech
1/100 AMH, GURINDER VIHAR, GREATER NOIDA
PIN: 2013077773, 2013077773
Email: H2H2A2V0H2A2004@yahoo.com

M/s Aashiyana Promoters & Developers
Pvt. Ltd.
Regd. Office: Unit 219, SF, Vasundhara
Enclave, Plot No. 1, Vardhman Sunrise Plaza LSC, Delhi - 110096
Tel: 9810849933
Email: info@newtechgroup.co
Web: www.newtechgroup.co
State: Uttar Pradesh
State Code: 09
GSTIN: 09AAGC0212121W
CIN No.: U95400DL2007PTC028513
Dated: 04 Mar 2014

Cust. ID: WT/GX/F 1108 PROVISIONAL INVOICE To, Mr. NEERAJ VOHRA R/o 31/308 ANHQ, GURINDER VIHAR, GREATER NOIDA Mobile No. 9828877773
Billing Date: 15 Sep 2013
Subject: Request for payment towards your Unit No. F-1108 having Super Area of Approx 1895 Sq.Ft located at "Newtech La Galaxia" at Plot No. HRA-11.
Builder Site: C, Phase-II, Gt. Noida.
Dear Customer,
You have been allotted a Unit No. F-1108 on 11th Floor in Tower-F being developed on Plot No. HRA-11, Surajpur Site C, Phase-II, Gt. Noida. We have located the referred Unit in "Newtech La Galaxia" Group Housing Complex under Read Payment Plan.

S. No.	Particulars	Head	Due Date	Particulars					Total
				Installment	Extra	COST	GST	GST	
1	ON START OF PLASTER WORK	Dual Meter Charges	31 Jan 2014	17,500	0	750	750	1,500	19,000
2		IFMS		17,438	0	0	0	0	17,438
3		Lease Rent		59,288	0	3,567	3,567	7,134	66,422
4		Other Charge		37,500	0	2,250	2,250	4,500	41,000
5		Park or Road or Corridor Facing		30,075	0	1,000	1,000	4,100	35,000
6	Previous Dues			31,01,800	0	0	0	0	31,01,800
	Total Receivable Amount			32,65,801	0	5,567	5,567	12,602	32,71,335
	Total Received Amount								₹ 3,62,713
	Total Outstanding Amount								₹ 29,08,622
	Total Outstanding Amount (In Words)								Rupees Three Lakh Fifty Two Thousand Seven Hundred Thirteen Only.

Your contract due date is 31 Jan 2014, we are requested to remit the total dues of Rs. 32,71,335/- (Rupees Three Lakh Fifty Two Thousand Seven Hundred Thirteen Only) in favour of AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD. Payable at Noida within 10 days to avoid penal interest.
M/s Newtech
A/s Name - Aashiyana Promoters and Developers Pvt. Ltd.
Account No. - 05501010010763
Bank Address - 9/89, Raj Nagar, Ghaziabad
IFSC Code - UBIN0555533
Bank Name - Union Bank of India

Kindly note that in case of non-receipt of due amount within stipulated time, interest @18 % p.a. shall be charged as per company's policy on the delayed payments.

Thank you & ensuring you of our best services always.
AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD.

Authorized Signatory
Name

This invoice is provisional, for any delayed in payment interest will be charged 18 % p.a. which will be calculated & communicated separately and the final amount (if any) will be calculated at the time of receiving NOC.
• Helpline No. 9828849933
• Please ignore this letter in case, the payment has been already made.
• Any delay in payment head of tax will be charge @ 48% per month. (Maximum)

Customer ID: NY/GLX/F-1103
Sh. Neeraj Vohra
1103/ANNO, GURINDER VIHAR, GREATER NOIDA
MO: 9871037773, 9871037773
Email: NEERAJVOHRA2004@yahoo.com

M/s Aashiyana Promoters & Developers
Pvt. Ltd.
Regd. Office: Unit 219, 5/F, Vasundhara
Enclave, Plot No. 1, Vardhman Sunrise Plaza
LSC, Delhi - 110096
Tel: 9818849921
Email: info@newtechgroup.co
Web: www.newtechgroup.co
State: Uttar Pradesh
State Code: 09
GSTIN: 09AAAGCA211112W
CIN No.: U45400DL2007PTC163513
Dated: 31 Jan 2024

Unit ID: NY/GLX/F-1103 PROVISIONAL INVOICE TO, Mr. NEERAJ VOHRA, I/o ST/308 ANNO, GURINDER VIHAR, GREATER NOIDA Mobile no.: 9871037773
Booking Date: 15 Sep 2022 Subject: Request for payment towards your Unit No. F-1103 having Super Area of approx. 1395 Sq.ft. booked at "Newtech La
Galaxia" at Plot No. HRA-11, Surajpur Site C, Phase-II, Gr. Noida. Dear Customer, You have been allotted a Unit No. F-1103 on 11th Floor in Tower-F being
developed on Plot No. HRA-11, Surajpur Site C, Phase-II, Gr. Noida. You have booked the referred Unit in "Newtech La Galaxia" Group Housing Complex
under Real Payment Plan payment plan.

S. No.	Particulars	Head	Due Date	Receivable					Total Installment
				Installment	S.Tax	CGST	SGST	GST	
1	ON START OF PLASTER WORK	Dual Meter Charges	11 Jan 2024	12,500	0	750	750	1,500	14,000
2		IFMS		17,438	0	0	0	0	17,438
3		Lease Rent		59,288	0	3,557	3,557	7,114	66,402
4		Other Charge		37,500	0	2,250	2,250	4,500	42,000
5		Park or Road or Corner Facing		34,875	0	2,093	2,093	4,186	39,061
6	Previous Dues			31,03,800	98,949	9,311	9,311	18,622	32,29,993
	Total Receivable Amount			33,65,401	98,949	17,961	17,961	35,922	34,98,273
	Total Received Amount								₹ 3,52,713
	Total Outstanding Amount								
	Total Outstanding Amount (In Words)			Rupees Three Lakh Fifty Two Thousand Seven Hundred Thirteen Only.					

Your demand due date is 31 Jan 2024, we are requested to remit the total dues of Rs. 3,52,713/- (Rupees Three Lakh Fifty Two Thousand Seven Hundred Thirteen Only) in favour of AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD. Payable at Noida within 10 days to avoid penal interest.

REQUEST Detail:

A/c Name - Aashiyana Promoters and Developers Pvt. Ltd.
Account No - 00211060000748
Bank Address - Sector - 31, Noida
IFSC Code - 25800000211
Sign Name - Zia Sahkari Bank Ltd. Ghaziabad

Kindly note that in case of non-receipt of due amount within stipulated time, interest @ 18 % p.a. shall be charged as per company's policy on the delayed payments.

Thanking you & assuring you of our best services always.

for AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD.

(This is computer generated letter hence no signature required)

Note

- The invoice is provisional, for any delayed in payment interest will be charged 18 % p.a. which will be calculated & communicated separately and the final interest (if any) will be calculated at the time of receiving NOC
- Helpline No. 9818849921
- Please ignore this letter in case, the payment has been already made.
- Any delay in payment head of tax will be charge @ 48% per month (Maximum)

Aashiyana Promoters and Developers Pvt. Ltd. (CIN : U45400DL2007PTC163513)
Regd. Office : Unit - 219, 5F, Vasundhara Enclave, Plot no. 1, Vardhman Sunrise Plaza LSC, Delhi - 110096
F-mail : info@newtechgroup.co

उ.प्र. भू-सम्पदा विनियामक प्राधिकरण

क्षेत्रीय कार्यालय, एच-169, सेक्टर गामा-2
ग्रेटर नोएडा सिटी, गौतमबुद्धनगर

पत्रांक: 5186/यूपी0रेरा/क्ष0का0/वसूली/2022-23

दिनांक: 17/03/2023

वसूली प्रमाण-पत्र
(अन्तर्गत धारा-40 भू-सम्पदा (विनियमन एवं विकास) अधिनियम, 2016)

प्रेषक,

सचिव,

उ.प्र. भू-सम्पदा विनियामक प्राधिकरण,

क्षेत्रीय कार्यालय, ग्रेटर नोएडा, गौतमबुद्धनगर।

सेवा में,

जिलाधिकारी,

गौतमबुद्धनगर।

महोदय,

उ.प्र. भू-सम्पदा विनियामक प्राधिकरण द्वारा भू-सम्पदा (विकास एवं विनियमन) अधिनियम-2016 की धारा-31 के अंतर्गत संचित शिकायत संख्या- NCR144/10/62470/2020 नीरज वोहरा बनाम मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि. में नियमानुसार धारा-63 के अंतर्गत सुनवाई उपरान्त दिनांक 04-07-2022 को उ.प्र. भू-सम्पदा विनियामक प्राधिकरण द्वारा निम्नवत् आदेश पारित किये गये हैं:-

"समस्त वर्णित तथ्यों एवं परिस्थितियों को दृष्टिगत रखते हुए यदि विपक्षी द्वारा दिनांक 31.12.2022 तक कब्जा दिये जाने की सूचना, आदेश दिनांक 12.10.2021 के अनुसार अकाउन्ट्स सैटल कर "कम्प्लेन्ट पेज" पर अपलोड नहीं की जाती है, तो दिनांक 31.12.2022 के बाद सचिव, रेरा प्रकरण में आदेश दिनांक 12.10.2021 के पृष्ठ संख्या-18 के आदेश के बिन्दु संख्या-3 के अनुसार विलम्बित अवधि के ब्याज की धनराशि हेतु वसूली प्रमाण पत्र जारी कराये।"

प्रमोटर/विकासकर्ता द्वारा आदेश का अनुपालन नहीं किया गया है। शिकायतकर्ता/आवदी नीरज वोहरा ने दिनांक 31-12-2021 को प्रार्थना-पत्र देकर आदेश का क्रियान्वयन कराने का अनुरोध किया है।

भू-सम्पदा (विनियमन एवं विकास) अधिनियम, 2016 की धारा-40 में प्राविधानित है कि "यदि कोई प्रवर्तक या आवंदी अथवा भू-सम्पदा अधिकर्ता, जैसा मामला हो, इस अधिनियम या इसके अधीन निर्मित नियमों तथा विनियमों के अधीन न्यायनिर्णायक अधिकारी या विनियामक प्राधिकरण अथवा अपील अधिकरण, जैसा मामला हो, द्वारा उस पर अधिरोपित किसी ब्याज या शांति अथवा क्षतिपूर्ति का भुगतान करने में असफल रहता है, तब ऐसे प्रवर्तक या आवंदी अथवा भू-सम्पदा अधिकर्ता से ऐसी रीति से, जो विहित की जा सकती है, भू-राजस्व बकाये के रूप में उसकी वसूली की जाएगी।"

अतः उ.प्र. भू-सम्पदा विनियामक प्राधिकरण पर अधिनियम की धारा-40 के अंतर्गत प्रदत्त शक्तियों का उपयोग करते हुए शिकायतकर्ता को देय धनराशि की वसूली विपक्षी प्रमोटर मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि. से भू-राजस्व के बकाये को भूल कराने का निर्णय लिया गया है।

वसूली की जाने वाली धनराशि तथा पक्षकारों का पूर्ण विवरण निम्नवत् है:-

1. शिकायतकर्ता का नाम व पता:- श्री नीरज चोहरा, निवासी: 3टी/308, अव्यू गुरुजिन्दर विहार, ग्रेटर नोएडा, गौतमबुद्धनगर
2. कम्पनी/व्यक्ति (डिफाल्टर) का नाम: मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि.
3. पता जिससे वसूली की जानी है
स्थायी पता: डी-16/410, ब्लॉक-डी, पॉस्ट-16, सेक्टर-7, रोहिणी, नई दिल्ली-110085
स्थलीय पता:- ला-गैलेक्सिया, प्लॉट नं० एचआरए-11, सूरजपुर साईट सी, ग्रेटर नोएडा

4. कम्पनी के चेयरमैन तथा डायरेक्टर धनराशि चुकाने के लिये विधि अनुसार उत्तरदायी हैं।

5. जमा मूल धनराशि:	रु.	30,47,559.00
6. वसूली योग्य धनराशि		
i. ब्याज (दि०- 01.05.2017 से 25.03.2020 तक आगणित)(प्री-फोर्स मैज्योर)	रु.	7,34,586.96
ii. ब्याज (दि०- 26.09.2020 से 28.02.2023 तक आगणित)(पोस्ट-फोर्स मैज्योर)	रु.	6,14,003.82
iii. विलम्बित अवधि की धनराशि (दि०- 03.01.2016 से 30.04.2017 तक 5/- रुपये प्रति वर्गफुट प्रतिमाह की दर से आगणित)	रु.	1,04,625.00
	रु.	14,53,215.78

7. वसूली हेतु कुल योग (i+ii+iii)

8. उपरोक्त आगणन दिनांक 28.02.2023 तक का है, अतएव दिनांक 01.03.2023 से जमा मूल धनराशि रु. 30,47,559.00 पर 8.30 प्रतिशत वार्षिक साधारण ब्याज देय होगा।

9. वसूल धनराशि के सापेक्ष नियमानुसार संग्रह व्यय वसूल किया जा सकेगा।

वसूली प्रमाण-पत्र तीन प्रतियों में भेजते हुये अनुरोध है कि उपरोक्त वर्णित धनराशि रु. 14,53,215.78 (रुपया- चौदह लाख तिरपन हजार दो सौ पन्द्रह पैसा- अठहत्तर) विपक्षी मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि. से भू-राजस्व के बकाये की भाँति वसूल कराकर सम्पूर्ण धनराशि उ.प्र. भू-सम्पदा विनियामक प्राधिकरण के नाम बैंक ड्राफ्ट के माध्यम से जो लखनऊ में देय होगा, सहित वसूली प्रमाण-पत्र पूर्ण विवरण सहित उपलब्ध कराने का कष्ट करें।

भवदीय,

(राजेश कुमार त्यागी)
सचिव

उ.प्र. भू-सम्पदा विनियामक प्राधिकरण

क्षेत्रीय कार्यालय, एच-169, सेक्टर गामा-2
ग्रेटर नोएडा सिटी, गौतमबुद्धनगर

पत्रांक: 5186/यूपी0रेरा/क्षे0का0/वसूली/2022-23

दिनांक: 17/03/2023

वसूली प्रमाण-पत्र
(अन्तर्गत धारा-40 भू-सम्पदा (विनियमन एवं विकास) अधिनियम, 2016)

प्रेषक,
सचिव,
उ.प्र. भू-सम्पदा विनियामक प्राधिकरण,
क्षेत्रीय कार्यालय, ग्रेटर नोएडा, गौतमबुद्धनगर।

लेवा में
जिलाधिकारी,
गौतमबुद्धनगर।

महोदय,

उ.प्र. भू-सम्पदा विनियामक प्राधिकरण द्वारा भू-सम्पदा (विकास एवं विनियमन) अधिनियम-2016 की धारा-31 के अन्तर्गत स्थित शिकायत संख्या- NCR144/10/62470/2020 नीरज वोहरा बनाम मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि. में नियमानुसार धारा-63 के अन्तर्गत सुनवाई उपरान्त दिनांक 04-07-2022 को उ.प्र. भू-सम्पदा विनियामक प्राधिकरण द्वारा निम्नवत् आदेश पारित किये गये हैं:-

“समस्त वर्णित तथ्यों एवं परिस्थितियों को दृष्टिगत रखते हुए यदि विपक्षी द्वारा दिनांक 31.12.2022 तक कब्जा दिये जाने की सूचना, आदेश दिनांक 12.10.2021 के अनुसार अकाउन्ट्स सैटल कर “कम्प्लेन्ट पेज” पर अपलोड नहीं की जाती है, तो दिनांक 31.12.2022 के बाद सचिव, रेरा प्रकरण में आदेश दिनांक 12.10.2021 के पृष्ठ संख्या-18 के आदेश के बिन्दु संख्या-3 के अनुसार विलम्बित अवधि के ब्याज की धनराशि हेतु वसूली प्रमाण पत्र जारी करायें।”

प्रमोटर/विकासकर्ता द्वारा आदेश का अनुपालन नहीं किया गया है। शिकायतकर्ता/आवंटी नीरज वोहरा ने दिनांक 31-12-2021 को प्रार्थना-पत्र देकर आदेश का क्रियान्वयन कराने का अनुरोध किया है।

भू-सम्पदा (विनियमन एवं विकास) अधिनियम, 2016 की धारा-40 में प्राविधानित है कि “यदि कोई प्रवर्तक या आवंटी अथवा भू-सम्पदा अधिकर्ता, जैसा मामला हो, इस अधिनियम या इसके अधीन निर्मित नियमों तथा विनियमों के अधीन न्यायनिर्णायक अधिकारी या विनियामक प्राधिकरण अथवा अपील अधिकरण, जैसा मामला हो, द्वारा उस पर अधिरोपित किसी ब्याज या शास्ति अथवा क्षतिपूर्ति का भुगतान करने में असफल रहता है, तब ऐसे प्रवर्तक या आवंटी अथवा भू-सम्पदा अधिकर्ता से ऐसी रीति से जो वर्णित हो जा सकेगी, भू-राजस्व बकाये के रूप में उसकी वसूली की जाएगी।”

अतः उ.प्र. भू-सम्पदा विनियामक प्राधिकरण पर अधिनियम की धारा 40 के अन्तर्गत प्रदत्त शक्तियों का उपयोग करते हुए उपर्युक्त शिकायतकर्ता को देय धनराशि की वसूली विपक्षी प्रमोटर मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि. से भू-राजस्व के बकाये की शीति कराने का निर्णय लिया गया है।



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वसूली की जाने वाली धनराशि तथा पक्षकारों का पूर्ण विवरण निम्नवत् है:-

1. शिकायतकर्ता का नाम व पता:- श्री नीरज वोहरा , निवासी: 3टी/308, अखू गुरुजिन्दर विहार, ग्रेटर नोएडा, गौतमबुद्धनगर
2. कम्पनी/व्यक्ति (डिफाल्टर) का नाम: मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि.
3. पता जिससे वसूली की जानी है
स्थायी पता: डी-16/410, ब्लॉक-डी, पॉकट-16, सेक्टर-7, रोहिणी, नई दिल्ली-110085
स्थलीय पता:- ला-गैलेक्सिया, प्लॉट नं. एवआरए-11, सूरजपुर साईट सी, ग्रेटर नोएडा

4. कम्पनी के चेयरमैन तथा डायरेक्टर धनराशि चुकाने के लिये विधि अनुसार उत्तरदायी हैं।
5. जमा मूल धनराशि: रु. 30,47,559.00
6. वसूली योग्य धनराशि
 - i. ब्याज (दि०- 01.05.2017 से 25.03.2020 तक आगणित)(प्री-फोर्स मैज्योर) रु. 7,34,586.96
 - ii. ब्याज (दि०- 26.09.2020 से 28.02.2023 तक आगणित)(पोस्ट-फोर्स मैज्योर) रु. 6,14,003.82
 - iii. विलम्बित अवधि की धनराशि (दि०- 03.01.2016 से 30.04.2017 तक
5/- रूपये प्रति वर्गफुट प्रतिमाह की दर से आगणित) रु. 1,04,625.00

7. वसूली हेतु कुल योग (i+ii+iii) रु. 14,53,215.78

8. उपरोक्त आगणन दिनांक 28.02.2023 तक का है, अतएव दिनांक 01.03.2023 से जमा मूल धनराशि रु. 30,47,559.00 पर 8.30 प्रतिशत वार्षिक साधारण ब्याज देय होगा।

9. वसूल धनराशि के सापेक्ष नियमानुसार संग्रह व्यय वसूल किया जा सकेगा।
वसूली प्रमाण-पत्र तीन प्रतियों में भेजते हुये अनुरोध है कि उपरोक्त वर्णित धनराशि रु. 14,53,215.78 (रुपया- चौदह लाख तिरपन हजार दो सौ पन्द्रह पैसा- अठहत्तर) विपक्षी मे० न्यूटेक प्रोमोटर्स एंड डेवलपर्स प्रा.लि. से भू-राजस्व के बकाये की भाँति वसूल कराकर सम्पूर्ण धनराशि उ.प्र. भू-सम्पदा विनियामक प्राधिकरण के नाम बैंक ड्राफ्ट के माध्यम से जो लखनऊ में देय होगा, सहित वसूली प्रमाण-पत्र पूर्ण विवरण सहित उपलब्ध कराने का कष्ट करें।

भवदीय,

(राजेश कुमार त्यागी)
सचिव

CA [Signature]

IN THE COURT OF AO Bench RERA, G.R. Noida

Complaint/Suit/Appeal No. NCR/44/10/62470/2020 of 2025

In re:-

Neeraj Vohra Plaintiff/Appellant/Petitioner/Complainant

VERSUS

M/s Newtech Promoters & Developers Pvt. Ltd. (now M/s Nashiyara Promoters & Developers Pvt. Ltd.) Defendant/Respondent/Accused

KNOW ALL to whom these present shall come that I/We Alok Vats A/R of Newtech Promoters & Developers Pvt. Ltd. the above named do hereby appoint:

Chandra Kishore Jha & Aarushi Upadhyay & Saheli Chakraborty
Advocates

Enrl. No. D/794-A/1990

C.K. ASSOCIATES

S-209-210, 2nd Floor, Nipun Plaza, Plot No. 2, Sector-I, Vaishali, Ghaziabad. (M) - 9811295674
Chamber No. 12, Supreme Court of India, New Delhi, Chamber No. E-524, Karkardooma Court, Delhi
(herein after called the advocate/s) to be my/our Advocate in the above noted case authorize him:-

- To act, appear and plead in the above-noted case in this Court or in any other Court in which the same may be tried or heard and also in the appellate Court including High Court subject to payment of fees separately for each Court by me/us.
- To sign, file, verify and present pleadings, appeals, cross-objections or petitions for executions review revision, withdrawal, compromise or other petitions or affidavits or other documents as may be deemed necessary or proper for the prosecution of the said case in all its stages subject to payment of fees for each stage.
- To file and take back documents, to admit and/or deny the documents of opposite party.
- To withdraw or compromise the said case or submit to arbitration any differences or disputes that may arise touching or in any manner relating to the said case.
- To take execution proceedings.
- To deposit, draw and receive monthly cheques, cash and grant receipts thereof and to do all other acts and things which may be necessary to be done for the progress and in the course of the prosecution of the said case.
- To appoint and instruct any other Legal Practitioner authorising him to exercise the power and authority hereby conferred upon the Advocate whenever he may think fit to do so and to sign the power of attorney on our behalf.
- And I/We the undersigned do hereby agree to rectify and confirm all acts done by the Advocate or his substitute in the matter as my/our own acts, if done by me/us to all intents and proposes.
- And I/We undertake that I/We or my/our duly authorised agent would appear in Court on all hearings and will inform the Advocate for appearance when the case is called.
- And I/We the undersigned do hereby agree not to hold the advocate or his substitute responsible for the result of the said case.
- The adjournment costs whenever ordered by the Court shall be of the Advocate which he shall receive and retain for himself.
- And I/We the undersigned to hereby agree that in the event of the whole or part of the fee agreed by me/us to be paid to the advocate remaining unpaid he shall be entitled to withdraw from the prosecution of the said case until the same is paid up. The fee settled is only for the above case and above Court. I/We hereby agree that once fee is paid, I/We will not be entitled for the refund of the same in any case whatsoever and if the case prolongs for more than 3 years the original fee shall be paid again by me/us.

IN WITNESS WHEREOF I/We do hereunto set my/our hand to these presents the contents of which have been understood by me/us on this 15th day of April, 2025

Accepted subject to the terms of the fees.

CHANDRA KISHORE JHA
Enrl. D/794-A/1990
Advocate
Supreme Court of India & RERA Consultant
Ct. 10-2A, Anand Bhawan, 12, K.C. Marg, CPM, Delhi-1
Ph: 92052712, 1101 Noida, Ph: 982, 540-1, Varanasi, Gt.
Advocate@ckjha@gmail.com, ckjha.co.in
M. 9811295674

SAHELI CHAKRABORTY
Advocate
Enroll. No. D/2381/2025
Email: advsaheli@gmail.com
Mob. 9307111111

AARUSHI UPADHYAY
Advocate
Enroll. No. UP21256/22
High Courts & All its Subordinate Courts
Mobile No. 9205507267
advupadhyay0710@gmail.com



Aarushi

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CERTIFIED TRUE COPY OF THE RESOLUTION PASSED AT THE MEETING OF THE BOARD OF DIRECTORS OF AASHIYANA PROMOTERS AND DEVELOPERS PRIVATE LIMITED HELD AT THE REGISTERED OFFICE OF THE COMPANY AT UNIT-219, S/F, VASUNDHARA ENCLAVE PLOT NO. 1, VARDHMAN SUNRISE PLAZA LSC DELHI 110096 ON 1st DAY OF NOVEMBER, 2023 AT 11:00 A.M

AUTHORIZATION

The Chairman further informed the Board about the necessity to authorize **Mr. Chandra Kishore Jha & Mr. Parveen Kumar, Advocates (Authorised Representative)**, to sign and execute all papers, applications, replies, vakalatnamas, affidavits and all other documents as may be required to be filed with respect to legal cases filed before the Uttar Pradesh Real Estate Regulatory Authority (UP RERA) on behalf of the company.

The Board considered the same and passed the following resolution:

"RESOLVED THAT **Mr. Chandra Kishore Jha & Mr. Parveen Kumar, (Authorised Representative)**, is authorised to sign and execute all papers, applications, replies, vakalatnamas, affidavits and all other documents as may be required to be filed in the matter of **M/S. AASHIYANA PROMOTERS AND DEVELOPERS PRIVATE LIMITED**

RESOLVED FURTHER THAT **Mr. Chandra Kishore Jha & Mr. Parveen Kumar (Authorised Representative)** and **Mr. Chandra Kishore Jha & Mr. Parveen Kumar (Legal Representative)**, are also authorized to do all such acts and things as required in connection with the Legal proceedings of the Company to give effect to the above resolution".

CERTIFIED TRUE COPY

For M/S. AASHIYANA PROMOTERS AND DEVELOPERS PRIVATE LIMITED
For Aashiyana Promoters And Developers Pvt. Ltd.

DIRECTOR *Pankaj - Kumar*

Director